The EUR-Lex Retrieval Dataset

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Annotation Calibration Set (solutions)

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I. Warm-up set

The calibration exercises begin with a brief warm-up comprising four cases. Annotators should label these cases individually without discussing them at this stage. The purpose of this exercise is to familiarize yourself with the annotation interface and label schema.

1. Download the folder "toy_dataset" to your local device
2. In the subfolder "interface", open annotation_interface.html with your preferred web browser
3. Load the annotation sheet warm_up_set.csv from the folder "empty
4. Complete the annotations
5. Once you have filled out the warm-up.csv annotation sheet, please reupload it to the folder "toy_dataset\labeled"

A. Query-candidate pair 1

<table>
<tr><th colspan="4">Example 1</th></tr>
<tr><td>Query ID
ECLI:EU:C:2020:954</td><td>Query date
25/11/2020</td><td>Candidate ID
ECLI:EU:T:1993:19</td><td>Candidate date
11/03/1993</td></tr>
<tr><td colspan="2">Query title: Banca B. SA v A.A.A.</td><td colspan="2">Candidate title: Michael Boessen v Economic and Social Committee</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">This preliminary ruling request from the Romanian Court of Appeal Cluj concerns the interpretation of Article 6(1) of the Unfair Contract Terms Directive (93/13/EEC). The case involves a loan agreement where the terms for calculating the variable interest rate were found to be unfair. The referring court seeks guidance on the national court's powers after identifying such unfair terms, particularly when the contract cannot continue without them and national law offers no direct replacement. The Court of Justice clarified that while national courts cannot modify unfair terms directly, they must take all necessary measures to protect the consumer from adverse consequences of contract annulment. This can include inviting parties to negotiate a new interest rate calculation method within a court-defined framework, ensuring a balance between parties and upholding consumer protection objectives.</td><td colspan="2">The applicant, Michael Boessen, a former official of the Economic and Social Committee (ESC), challenged the calculation of his invalidity pension, which had been granted in 1981. He argued that his pension should have been calculated based on a different provision of the Staff Regulations, leading to a higher amount. The ESC rejected his request for recalculation in 1991, citing that the original decision from 1981, which clearly outlined the calculation method, was final and that the time-limits for bringing an action had long expired. The applicant contended that the original decision did not explicitly state the grounds for not applying the provision he relied upon and that his poor health at the time prevented him from acting sooner. He also argued that his request constituted a new fact justifying recalculation. The Court of First Instance found the action inadmissible, ruling that the original pension calculation decision from 1981 was the act adversely affecting the applicant and that the time-limits for action began then. The Court determined that the applicant's new interpretation of the Staff Regulations did not constitute a new fact, and his claims regarding poor health were unsubstantiated. Consequently, the Court dismissed the action as inadmissible and ordered the parties to bear their own costs.</td></tr>
<tr><td colspan="4">Correct label: Label 0 – Not relevant
- The query case concerns EU consumer law and the Unfair Contract Terms Directive. The case deals with the consequences of unfair contract terms and the ability of national courts to modify such unfair terms.
- The candidate case concerns EU staff law and the procedural admissibility of carrying out invalidity pension recalculations and time-limits.

Label 0 – Not relevant
1. Does the candidate case belong to a clearly different area of EU law than the query case? Yes, EU consumer law versus EU staff law
2. Does the candidate case address a wholly different legal issue from the query case. Yes, unfair contract terms versus invalidity pension recalculations
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. Yes, there is no meaningful overlap
All answers are "yes" → The correct label is found
→ This candidate case would not realistically help someone dealing with the issue in the query case</td></tr>
</table>

B. Query-candidate pair 2

<table>
<tr><th colspan="4">Example 2</th></tr>
<tr><td>Query ID
ECLI:EU:T:2009:508</td><td>Query date
15/12/2009</td><td>Candidate ID
ECLI:EU:T:2008:116</td><td>Candidate date
17/04/2008</td></tr>
<tr><td colspan="2">Query title: Media-Saturn-Holding GmbH v Office for Harmonisation in the Internal Market (Trade Marks and Designs) (OHIM)</td><td colspan="2">Candidate title: Nordmilch eG v Office for Harmonisation in the Internal Market (Trade Marks and Designs) (OHIM)</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">Media-Saturn-Holding GmbH applied for a figurative Community trade mark 'BEST BUY'. The application was refused by OHIM's Examiner and subsequently by the Fourth Board of Appeal, based on Article 7(1)(b) of Regulation (EC) No 40/94 (now Article 7(1)(b) of Regulation (EC) No 207/2009), which states that marks devoid of any distinctive character shall be refused registration. Media-Saturn-Holding GmbH brought an action before the General Court of the European Union. The General Court dismissed the action, upholding OHIM's decision that the mark 'BEST BUY' lacked distinctive character for the goods and services applied for, as it is perceived by the relevant public as a common laudatory expression indicating quality or value.</td><td colspan="2">Nordmilch eG applied for the Community word mark 'Vitality' for goods and services across several classes, including food and beverages. The examiner at OHIM partially dismissed the application, citing Article 7(1)(b) of Regulation (EC) No 40/94, which states that trade marks devoid of any distinctive character shall be refused registration. Nordmilch appealed this decision, but the Fourth Board of Appeal of OHIM dismissed the appeal. Nordmilch then brought an action before the Court of First Instance. The Court examined whether the word 'Vitality' possessed sufficient distinctive character to function as a trade mark for the goods and services applied for. The Court considered the common understanding of the term 'Vitality' in relation to food and beverage products, noting its positive connotations related to health and energy. However, it concluded that the term was too descriptive and commonly used in the relevant sector to acquire distinctiveness. Therefore, the Court dismissed the action, upholding OHIM's decision to refuse registration.</td></tr>
<tr><td colspan="4">Correct label: Label 3 – Directly relevant
- The query case relates to a trademark application under the (now repealed) Community Trade Mark Regulation. It involves an assessment of distinctive character. The trademark is refused due to a lack of distinctive character
- The candidate case also involves a trade mark (more specifically a word mark). It is also assessed under the old Community Trade Mark Regulation for its distinctive character. The trade mark is refused for a lack of distinctiveness/for being too descriptive.

Label 0 – Not relevant
1. Does the candidate case belong to a clearly different area of EU law than the query case? No, both cases relate to EU trade mark law
2. Does the candidate case address a wholly different legal issue from the query case. No, both cases involve a distinctiveness analysis
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. No, there is clearly an overlap in terms of the principles, reasoning and facts
Not all answers are "yes" → Proceed to the next label

Label 1 – Marginally relevant
1. Do the cases share a broad legal field (e.g., both within EU law or same general domain)? Yes.
2. Are the legal issues nevertheless different in substance (e.g., admissibility vs. substantive rights)? No, the issue concerned in both cases is a lack of distinctive character
3. Is the overlap limited to the general context rather than the specific legal reasoning or doctrine? No, the overlap is specific enough and not merely contextual</td></tr>
</table>

Not all answers are "yes" → Proceed to the next label

Label 2 – Substantially relevant

1. Do both cases fall within the same specific area of law and regulatory framework? ***Yes***
2. Do they address related legal issues or apply similar legal principles (even if not identical)? ***Yes**, the issue in both cases relates to marks that are too descriptive*
3. Is there meaningful overlap in reasoning, interpretation, or methodology that could assist in resolving the query case? ***Yes**, there is an overlap in terms of the assessment of distinctiveness*
4. Do they differ in terms of the legal question that is being asked or the provision that is being interpreted? ***No**, the legal question is essentially the same*

Not all answers are "yes" → Proceed to the next label

Label 3 – Directly relevant

1. Do both cases concern the same specific legal provision or closely related provisions? ***Yes**, article 7(1)(b)*
2. Do they address essentially the same legal question or problem? ***Yes**, overly descriptiveness*
3. Do they apply the same legal test, principles, or doctrinal framework? ***Yes**, the distinctiveness test*
4. Would the reasoning in the candidate case directly guide or resolve the issue in the query case? ***Yes**, the reasoning is directly transferrable*

All answers are "yes" → The correct label is found
→ The candidate case directly addresses the same issue as in the query case and would be a key authority for resolving it.

C. Query-candidate pair 3

<table>
<tr><th colspan="4">Example 3</th></tr>
<tr><td>Query ID
ECLI:EU:T:2019:154</td><td>Query date
12/03/2019</td><td>Candidate ID
ECLI:EU:T:2014:854</td><td>Candidate date
07/10/2014</td></tr>
<tr><td colspan="2">Query title: Fabio De Masi and Yanis Varoufakis v European Central Bank</td><td colspan="2">Candidate title: Schenker AG v European Commission</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">The applicants, Fabio De Masi and Yanis Varoufakis, sought access to an ECB document containing legal advice on the interpretation of Article 14.4 of the Protocol on the Statute of the ESCB and of the ECB. The ECB refused access, citing exceptions for the protection of legal advice and internal documents. The applicants argued that the internal document exception was misapplied and that there was an overriding public interest in disclosure. The General Court examined the ECB's decision, finding that the document was indeed for internal use to support the Governing Council's deliberations, and that the ECB had provided adequate reasons for its refusal. The Court also found that the applicants had not demonstrated an overriding public interest that would justify disclosure, particularly as the document was general in nature and not directly linked to a specific, publicised decision. Consequently, the action was dismissed.</td><td colspan="2">Schenker AG applied for access to the Commission's administrative file and the full text of its decision concerning the airfreight cartel (Case COMP/39258), and alternatively, a non-confidential version. The Commission refused access, citing exceptions for the protection of commercial interests and the purpose of investigations, and stating that a non-confidential version was not yet available. Schenker argued that these exceptions were not properly applied, that there was an overriding public interest in disclosure, and that partial access or a non-confidential version should have been provided. The General Court partially annulled the Commission's decision, finding that while the Commission was justified in refusing access to the entire case file and the full decision text due to the ongoing legal proceedings and the need to protect commercial interests and investigation purposes, it should have provided a non-confidential version of the decision, as the public interest in transparency outweighed the remaining confidentiality concerns for parts of the decision not subject to specific claims of confidentiality.</td></tr>
<tr><td colspan="4">Correct label: Label 2 – Substantially relevant
- The query case concerns access to documents under EU law. The key question pertains to the application of an exception (protection of legal advice and internal documents) and the requirement of demonstrating an overriding public interest for this exception to apply. No overriding public interest was demonstrated.
- The candidate case also concerns access to documents. The focus here is also on invoking an exception (commercial interests) and balancing transparency against confidentiality. In the candidate case, the transparency prevailed over confidentiality.

Label 0 – Not relevant
1. Does the candidate case belong to a clearly different area of EU law than the query case? No, both cases concern EU laws on access to documents
2. Does the candidate case address a wholly different legal issue from the query case. No, both concern refusal of access to documents/the application of exceptions
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. No, there is clearly an overlap in terms of the principles, reasoning and facts
Not all answers are "yes" → Proceed to the next label

Label 1 – Marginally relevant
1. Do the cases share a broad legal field (e.g., both within EU law or same general domain)? Yes.
2. Are the legal issues nevertheless different in substance (e.g., admissibility vs. substantive rights)? No, they have exceptions and overriding public interest in common</td></tr>
</table>

3. Is the overlap limited to the general context rather than the specific legal reasoning or doctrine? ***No**, the overlap is specific enough and not merely contextual*

Not all answers are "yes" → Proceed to the next label

Label 2 – Substantially relevant

1. Do both cases fall within the same specific area of law and regulatory framework? ***Yes**, EU laws on access to documents*
2. Do they address related legal issues or apply similar legal principles (even if not identical)? ***Yes**, the application of exceptions and overriding public interest*
3. Is there meaningful overlap in reasoning, interpretation, or methodology that could assist in resolving the query case? ***Yes**, there is an overlap in terms of the reasoning*
4. Do they differ in terms of the legal question that is being asked or the provision that is being interpreted? ***Yes**, they relate to different specific exceptions (legal advice/internal vs commercial/investigations) and different institutional contexts*

All answers are "yes" → The correct label is found

→ The candidate case applies closely related principles on access to documents and applying a balancing test, but concerns different exceptions and factual contexts, so it is substantially (but not directly) relevant.

D. Query-candidate pair 4

<table>
<tr><th colspan="4">Example 4</th></tr>
<tr><td>Query ID
ECLI:EU:C:1995:266</td><td>Query date
11/08/1995</td><td>Candidate ID
ECLI:EU:T:1999:140</td><td>Candidate date
08/07/1999</td></tr>
<tr><td colspan="2">Query title: Cavarzere Produzioni Industriali SpA and others v Ministero dell'Agricoltura e delle Foreste and others</td><td colspan="2">Candidate title: Eridania Zuccherifici Nazionali SpA and Others v Council of the European Union</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">This preliminary ruling request from the Italian Consiglio di Stato concerns the interpretation of EU regulations on the common organization of the sugar market, specifically Regulation No 1785/81 and Regulation No 193/82. The case involves disputes over the allocation of sugar production quotas for several marketing years, particularly concerning the adjustment of quotas for undertakings following the transfer of factories and the exercise of Member States' 'power of manoeuvre' to adjust quotas. The Court was asked whether the 1 March deadline for exercising this power was mandatory, even if related EU regulations were adopted late. It also questioned the relationship between general quota transfer rules and the power of manoeuvre, how the 10% adjustment limit applies to A and B quotas, the basis for calculating quotas subject to adjustment, and the definition of 'restructuring plans' that could allow for exceeding the 10% limit in Italy. The Court ruled that the 1 March deadline is mandatory and cannot be implicitly extended. It clarified that the power of manoeuvre can be exercised concurrently with quota adjustments following transfers, provided each provision's conditions are met. The 10% limit applies to each quota (A and B) individually, and the base for calculation is the quota originally allocated by the Member State. Finally, 'restructuring plans' refer to sector-wide plans at national or regional levels, not just individual company plans.</td><td colspan="2">This case involves an action for annulment brought by several Italian sugar manufacturers against a Council regulation that fixed the derived intervention price for white sugar in Italy for the 1995/96 marketing year. The applicants argued that the regulation concerned them individually and directly, as it applied to a limited class of sugar producers with known production quotas and affected their contractual obligations with beet growers. The Council raised an objection of inadmissibility, arguing that the regulation was a legislative act of general application, not individually concerned with the applicants. The Court of First Instance found that the regulation applied to objectively determined situations and affected categories of persons in the abstract, particularly through the 'regionalisation' of prices which impacted all sugar manufacturers and beet growers in deficit areas. The Court concluded that the applicants were not individually concerned, as their identity was not specifically taken into account in the adoption of the regulation, and the system of regionalisation applied objectively to all market participants. Therefore, the action was dismissed as inadmissible.</td></tr>
<tr><td colspan="4">Correct label: Label 1 – Marginally relevant
- The query case is on the topic of EU agricultural law and looks into the substantive interpretation of regulations governing sugar production quotas and Member States' powers to adjust these quotas.
- The candidate case also concerns the EU sugar market framework, but focuses on procedural admissibility questions in an action for annulment rather than substantive quota rules.

Label 0 – Not relevant
1. Does the candidate case belong to a clearly different area of EU law than the query case? No, both concern EU agricultural law (sugar markets)
2. Does the candidate case address a wholly different legal issue from the query case. No, both sets of legal issues exist within this sugar market regulatory framework
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. No, there is clearly an overlap in terms of regulatory framework
Not all answers are "yes" → Proceed to the next label</td></tr>
</table>

Label 1 – Marginally relevant

1. Do the cases share a broad legal field (e.g., both within EU law or same general domain)? ***Yes***, *EU agricultural law and more specifically the organization of the sugar market*
2. Are the legal issues nevertheless different in substance (e.g., admissibility vs. substantive rights)? ***Yes***, *substantive quota interpretation versus procedural admissibility matters*
3. Is the overlap limited to the general context rather than the specific legal reasoning or doctrine? ***Yes***, *the overlap is limited to this regulatory background*

All answers are "yes" → The correct label is found

→ The candidate case operates within the same regulatory framework but addresses a different issue. It only offers some contextual relevance to the query case.

II. Group calibration set

As a next step, annotators will participate in a group calibration exercise based on a set of 10 query-candidate pairs.

For each pair, annotators should first form their own independent judgment regarding the appropriate relevance label. They then submit their label using a Poll Everywhere multiple-choice question. Once all responses have been collected, the distribution of answers is displayed. This is followed by a group discussion, during which participants reflect on their decisions, examine the sources of disagreement, and compare the reasoning behind different interpretations. Finally, the reference answer is presented and explained.

The objective of this exercise is to identify areas of ambiguity, align annotators' interpretations, and develop a shared understanding of how the annotation guidelines should be applied in practice.

A. Query-candidate pair 1

<table>
<tr><th colspan="4">Example 1</th></tr>
<tr><td>Query ID
ECLI:EU:C:2006:291</td><td>Query date
04/05/2006</td><td>Candidate ID
ECLI:EU:C:2009:501</td><td>Candidate date
03/09/2009</td></tr>
<tr><td colspan="2">Query title: Massachusetts Institute of Technology v Bundesgerichtshof</td><td colspan="2">Candidate title: AHP Manufacturing BV v Bureau voor de Industriële Eigendom</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">The case involves a request for a preliminary ruling from the German Federal Court of Justice concerning the interpretation of Council Regulation (EEC) No 1768/92 on supplementary protection certificates (SPCs) for medicinal products. The Massachusetts Institute of Technology (MIT) sought an SPC for a medicinal product called Gliadel, which consists of an active ingredient (carmustine) and an excipient (polifeprosan). The German Patent Office and Federal Patent Court rejected the application, considering polifeprosan not to be an active ingredient. The referring court asked whether a combination of substances, where only one has therapeutic effects and the other enables a specific pharmaceutical form necessary for the first substance's efficacy, falls under the definition of 'combination of active ingredients' in Article 1(b) of the Regulation. The Court of Justice ruled that the term 'active ingredient' should be interpreted in its usual meaning, excluding substances that do not have their own therapeutic effects. Therefore, a combination including such a substance does not constitute a 'combination of active ingredients' for the purpose of obtaining an SPC.</td><td colspan="2">This case involves a request for a preliminary ruling from a Dutch court concerning the interpretation of EU regulations on supplementary protection certificates (SPCs) for medicinal products. AHP Manufacturing BV applied for an SPC for the medicinal product Enbrel (etanercept) based on a European patent. However, the Dutch Industrial Property Office (BIE) refused the application, citing Article 3(c) of Regulation No 1768/92, which states that an SPC cannot be granted if the product has already been the subject of an SPC. This refusal was based on the fact that other SPCs for etanercept had already been granted to different patent holders. AHP appealed, arguing that the interpretation should be guided by Regulation No 1610/96, which allows for multiple SPCs for the same product if based on different patents and applications are pending. The Court of Justice interpreted Article 3(c) of Regulation No 1768/92 in light of Article 3(2) of Regulation No 1610/96, concluding that the grant of an SPC is not precluded simply because other SPCs for the same product have already been granted to different patent holders, provided the applications were lodged within the prescribed time limits and the overall protection periods do not exceed the statutory maximums. The Court emphasized the objective of ensuring uniform protection and encouraging pharmaceutical research across the EU.</td></tr>
<tr><td colspan="4">Correct label: Label 2 – Substantially relevant
- The query case deals with EU pharmaceutical patent law and the interpretation of the concept of 'active ingredient' under article 1(b) of Regulation 1768/92 on supplementary protection certificates.
- The candidate case also concerns supplementary protection certificates under Regulation 1768/92, but centers on whether multiple SPCs can be granted for the same product under article 3(c).

Label 0 – Not relevant
1. Does the candidate case belong to a clearly different area of EU law than the query case? No, both concern supplementary protection certificates under EU patent law
2. Does the candidate case address a wholly different legal issue from the query case. No, they both relate to the interpretation of Regulation 1768/92
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. No, there is clearly an overlap in terms of the legal ruleset being applied
Not all answers are "yes" → Proceed to the next label

Label 1 – Marginally relevant</td></tr>
</table>

1. Do the cases share a broad legal field (e.g., both within EU law or same general domain)? ***Yes**, EU pharmaceutical law*
2. Are the legal issues nevertheless different in substance (e.g., admissibility vs. substantive rights)? ***Yes**, the query case is about the definition of "active ingredient" and the candidate case is about SPCs already being granted*
3. Is the overlap limited to the general context rather than the specific legal reasoning or doctrine? ***No**, because they both interpret the same regulation and granting conditions for an SPC*

Not all answers are "yes" → Proceed to the next label

Label 2 – Substantially relevant

5. Do both cases fall within the same specific area of law and regulatory framework? ***Yes**, Regulation 1768/92 on SPCs*
6. Do they address related legal issues or apply similar legal principles (even if not identical)? ***Yes**, both concern conditions for granting SPCs*
7. Is there meaningful overlap in reasoning, interpretation, or methodology that could assist in resolving the query case? ***Yes**, both involve the interpretation of SPC eligibility criteria*
8. Do they differ in terms of the legal question that is being asked or the provision that is being interpreted? ***Yes**, article 1(b) versus article 3(c)*

All answers are "yes" → The correct label is found

→ The candidate case applies the same regulatory framework and interpretative approach but addresses a different specific condition for granting SPCs. This makes the candidate case substantially (but not directly) relevant to the query case.

B. Query-candidate pair 2

<table>
<tr><th colspan="4">Example 2</th></tr>
<tr><td>Query ID
ECLI:EU:T:2019:173</td><td>Query date
20/03/2019</td><td>Candidate ID
ECLI:EU:T:2022:268</td><td>Candidate date
04/05/2022</td></tr>
<tr><td colspan="2">Query title: Hércules Club de Fútbol, SAD v European Commission</td><td colspan="2">Candidate title: Larko Geniki Metalleftiki kai Metallourgiki AE v European Commission</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">Hércules Club de Fútbol, SAD brought an action before the General Court of the EU seeking the annulment of a European Commission decision that declared State aid granted by Spain to the club, in the form of a bank loan guarantee, incompatible with the internal market. The applicant argued that the Commission wrongly classified it as a ‘firm in difficulty’ and, crucially, failed to adequately state reasons for its assessment of the counter-guarantees provided, which were relevant to determining the existence and level of any advantage. The General Court found that the Commission’s decision lacked sufficient reasoning regarding the counter-guarantee provided by AligestiÃ³n, a shareholder, and therefore annulled the decision to the extent that it concerned Hércules Club de Fútbol, SAD, ordering the Commission to pay the costs.</td><td colspan="2">The applicant, Larko, challenged a European Commission decision that declared certain State aid measures granted by Greece to Larko incompatible with the internal market. The case specifically focused on a 2008 State guarantee for a loan, where the Commission found the 1% annual premium insufficient given Larko’s financial difficulties, thus constituting State aid. The General Court, in a previous judgment, had dismissed the action. However, the Court of Justice set aside that judgment regarding the assessment of the 2008 guarantee, finding the General Court had erred in law by presuming the Greek authorities’ awareness of Larko’s difficulties. The case was remitted to the General Court to re-examine the evidence concerning the Greek authorities’ knowledge of Larko’s financial situation and whether this was disputed during the administrative procedure. The General Court, after reviewing the evidence, including the Greek authorities’ own admissions of Larko’s deteriorating financial situation in mid-2008 and the lack of evidence supporting the adequacy of the 1% premium, concluded that the Commission had not committed a manifest error of assessment. The Court found that the Greek authorities were aware of Larko’s difficulties and that the premium did not reflect market conditions. Consequently, the action was dismissed.</td></tr>
<tr><td colspan="4">Correct label: Label 2 – Substantially relevant
- The query case addresses EU state aid law. The focus lies on a guarantee made by Spain for a loan to a football club. Spain successfully argued that the underlying Commission decision lacked sufficient reasoning.
- The candidate case addresses EU state aid law as well and also revolves around a state guarantee for a loan. However, the factual discussion relates to the payment of premiums at a below-market rate. It was argued that the Commission made an error of assessment, but this was not upheld.

Label 0 – Not relevant
1. Does the candidate case belong to a clearly different area of EU law than the query case? No, both concern EU state aid law
2. Does the candidate case address a wholly different legal issue from the query case. No, they both relate to state guarantees
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. No, there is a clear overlap in the subject matter of the cases
Not all answers are “yes” → Proceed to the next label

Label 1 – Marginally relevant</td></tr>
</table>

1. Do the cases share a broad legal field (e.g., both within EU law or same general domain)? ***Yes**, EU state aid law*
2. Are the legal issues nevertheless different in substance (e.g., admissibility vs. substantive rights)? ***No**, both concerns the assessment of state guarantees*
3. Is the overlap limited to the general context rather than the specific legal reasoning or doctrine? ***No**, both cases involve a fairly detailed assessment and center on the reasoning set out by the Commission*

Not all answers are "yes" → Proceed to the next label

Label 2 – Substantially relevant

1. Do both cases fall within the same specific area of law and regulatory framework? ***Yes**, state aid rules on guarantees*
2. Do they address related legal issues or apply similar legal principles (even if not identical)? ***Yes**, the assessment of whether guarantees confer an advantage/reflects market conditions*
3. Is there meaningful overlap in reasoning, interpretation, or methodology that could assist in resolving the query case? ***Yes**, in both cases there is an examination of the economic situation involve the interpretation of SPC eligibility criteria*
4. Do they differ in terms of the legal question that is being asked or the provision that is being interpreted? ***Yes**, both cases differ a bit in terms of the exact reasoning that is being applied. The query case mentions a lack of sufficient reasoning, whereas the candidate case involves a substantive error of assessment*

All answers are "yes" → The correct label is found

→ The candidate case applies closely related State aid principles on guarantees, but focuses on different aspects (here: lack of sufficient reasoning versus a substantive error in the evaluation). This makes the candidate case substantially (but not directly) relevant to the query case.

C. Query-candidate pair 3

<table>
<tr><th colspan="4">Example 3</th></tr>
<tr><td>Query ID
ECLI:EU:C:2009:131</td><td>Query date
05/03/2009</td><td>Candidate ID
ECLI:EU:T:1995:47</td><td>Candidate date
08/03/1995</td></tr>
<tr><td colspan="2">Query title: French Republic v Council of the European Union</td><td colspan="2">Candidate title: Hansa-Fisch GmbH v Commission of the European Communities</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">The French Republic brought an action for annulment against Council Regulation (EC) No 809/2007, which amended regulations concerning fishing measures, specifically the definition of drift nets. The applicant contested the inclusion of 'thonaille' nets within the definition of drift nets, arguing that this definition was not sufficiently reasoned and infringed the principles of proportionality and non-discrimination. The Court of Justice, in its Third Chamber, examined the arguments presented. It considered the definition of drift nets and the specific characteristics of the 'thonaille' net in relation to the conservation of fish stocks. The Court also assessed whether the Council had adequately stated the reasons for its decision and whether the regulation was proportionate and non-discriminatory. Ultimately, the Court dismissed the action, finding no grounds for annulment, and ordered the French Republic to pay the costs, while the Commission bore its own costs.</td><td colspan="2">This case involves a German fishing company, Hansa-Fisch GmbH, challenging the European Commission's decision to refuse its fishing license application for the second quarter of 1993 under the EEC-Morocco Agreement. The Commission had prioritized license applications from Spanish and Portuguese fishermen, citing the principle of relative stability as mandated by the Act of Accession of Spain and Portugal and relevant fisheries regulations. Hansa-Fisch argued this practice constituted discrimination contrary to Article 7 of the EEC Treaty and breached the principle of legitimate expectations, as it had received assurances of its inclusion. The Court of First Instance rejected these arguments. It found that the Act of Accession required the continuation of fishing activities previously undertaken by Spanish and Portuguese fishermen, justifying the priority given to them. The Court also clarified that the principle of relative stability, as applied here, did not conflict with the prohibition of nationality-based discrimination, as the situations of fishermen with and without prior fishing activities in the zone were different. The Court also dismissed the legitimate expectations claim, finding no binding commitment from the Commission and no evidence of detrimental reliance by the applicant. Consequently, the application was dismissed.</td></tr>
<tr><td colspan="4">Correct label: Label 1 – Marginally relevant
- The query case is about EU fisheries and the definition of "drifting nets" under Regulation 809/2007. It is argued that the definition goes against the principles of proportionality and non-discrimination.
- The candidate case is also about EU fisheries, but involves an individual license decision. It also makes mention of principles of non-discrimination and legitimate expectations.

Label 0 – Not relevant
1. Does the candidate case belong to a clearly different area of EU law than the query case? No, both involve EU fisheries law
2. Does the candidate case address a wholly different legal issue from the query case. Yes, the interpretation of a term versus and individual fishing license decision
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. No, there is some minor overlap in the sense that the principle of non-discrimination is invoked in both cases
Not all answers are "yes" → Proceed to the next label

Label 1 – Marginally relevant
1. Do the cases share a broad legal field (e.g., both within EU law or same general domain)? Yes, EU fisheries law</td></tr>
</table>

2. Are the legal issues nevertheless different in substance (e.g., admissibility vs. substantive rights)? ***Yes**, interpretation of the law versus individual license decision*
3. Is the overlap limited to the general context rather than the specific legal reasoning or doctrine? ***Yes**, the overlap is limited to the regulatory background*

All answers are "yes" → The correct label is found

→ The candidate case operates within the same EU fisheries law context and touches on similar general principles, but it addresses a different type of measure and legal issue. At best, it offers some contextual relevance to the query case.

D. Query-candidate pair 4

<table>
<tr><th colspan="4">Example 4</th></tr>
<tr><td>Query ID
ECLI:EU:C:1997:636</td><td>Query date
18/12/1997</td><td>Candidate ID
ECLI:EU:C:2002:495</td><td>Candidate date
17/09/2002</td></tr>
<tr><td colspan="2">Query title: Ballast Nedam Groep NV v Belgische Staat</td><td colspan="2">Candidate title: Concordia Bus Finland Oy Ab v Helsingin kaupunki and HKL-Bussiliikenne</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">This case involves a preliminary ruling requested by the Belgian Raad van State concerning the interpretation of a prior CJEU judgment (BNG I) related to public works contracts. The dispute centers on whether a dominant legal entity within a group, when applying for registration as a contractor, must be allowed to rely on the resources of its subsidiaries. The Court previously ruled that such reliance is permissible if the dominant entity can demonstrate it has access to the necessary resources. However, the parties disagreed on the implications of this ruling, specifically whether 'permit' meant 'require' and if the Member State retained discretion. The CJEU clarified that its previous judgment implies an obligation for the competent authority to consider the subsidiaries' references if the dominant entity proves it has access to their resources, thereby ensuring consistent application of EU directives on public works contracts and freedom to provide services.</td><td colspan="2">The case involves a tender procedure for urban bus transport services in Helsinki. Concordia Bus Finland challenged the city's decision to award the contract to its own municipal undertaking, HKL, arguing that the award criteria, which included additional points for low nitrogen oxide emissions and noise levels, were discriminatory. The Court of Justice interpreted Directive 92/50 (and by extension, Directive 93/38) to allow the use of ecological criteria in determining the economically most advantageous tender, provided these criteria are linked to the contract's subject matter, are not arbitrary, are clearly stated, and comply with fundamental EU principles like non-discrimination. The Court ruled that awarding points for environmental performance is permissible even if only a few undertakings, including the contracting entity's own, can meet them, as long as the criteria are objective and applied equally to all tenderers. The key is that the criteria are genuinely linked to the contract and do not unfairly restrict competition.</td></tr>
<tr><td colspan="4">Correct label: Label 1 – Marginally relevant
- The query case relates to public procurement law. The main question relates to the ability of an undertaking to rely on the resources of a subsidiary in a tender procedure.
- The candidate case is also about EU public procurement law, but it focuses on the lawfulness of including environmental award criteria in the course of the tender procedure.

Label 0 – Not relevant
1. Does the candidate case belong to a clearly different area of EU law than the query case? No, both involve EU public procurement law
2. Does the candidate case address a wholly different legal issue from the query case. Yes, the interpretation of earlier CJEU case law versus using ecological criteria in the tender procedure
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. Yes, aside from existing in the same legal domain, the factual/ reasoning overlap appears tenuous at best
Not all answers are "yes" → Proceed to the next label

Label 1 – Marginally relevant
1. Do the cases share a broad legal field (e.g., both within EU law or same general domain)? Yes, EU public procurement law
2. Are the legal issues nevertheless different in substance (e.g., admissibility vs. substantive rights)? Yes, relying on subsidiary resources versus the award criteria
3. Is the overlap limited to the general context rather than the specific legal reasoning or doctrine? Yes, the overlap is limited to matters that are broadly situated within the remit of public procurement law
All answers are "yes" → The correct label is found
→ The candidate case is situated within the same procurement framework, but that is where the overlap stops. At best, the candidate case might offer some contextual relevance to the query case.</td></tr>
</table>

E. Query-candidate pair 5

<table>
<tr><th colspan="4">Example 5</th></tr>
<tr><td>Query ID
ECLI:EU:T:2017:314</td><td>Query date
05/05/2017</td><td>Candidate ID
ECLI:EU:T:2010:424</td><td>Candidate date
05/10/2010</td></tr>
<tr><td colspan="2">Query title: Messe Friedrichshafen GmbH v European Union Intellectual Property Office</td><td colspan="2">Candidate title: Strategi Group Ltd v Office for Harmonisation in the Internal Market (Trade Marks and Designs) (OHIM)</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">Messe Friedrichshafen GmbH applied for an EU figurative mark 'Out Door'. El Corte Inglés opposed this application based on its earlier EU word mark 'OUTDOOR PRO', citing a relative ground for refusal under Article 8(1)(b) of Regulation No 207/2009. The opposition was partially upheld by the Opposition Division. The Board of Appeal of EUIPO annulled the Opposition Division's decision in part, confirming the refusal for certain services but allowing registration for others. Messe Friedrichshafen appealed this decision to the General Court, arguing that the Board of Appeal infringed Article 76 of Regulation No 207/2009 by not sufficiently considering the descriptiveness and weak distinctiveness of the earlier mark, and also infringed Article 8(1)(b) by finding a likelihood of confusion. The General Court rejected the first plea, finding that the Board of Appeal had adequately examined the evidence regarding the distinctiveness of the earlier mark and that arguments concerning absolute grounds for refusal were ineffective in opposition proceedings. The Court also rejected the second plea, finding that the Board of Appeal correctly assessed the visual, phonetic, and conceptual similarities between the marks and the relevant goods/services, leading to a likelihood of confusion for a significant part of the relevant public. The Court dismissed the action.</td><td colspan="2">Strategi Group Ltd applied to register the Community word mark STRATEGI. Reed Business Information (RBI), proprietor of the earlier French word mark Stratégies, opposed the application. The Opposition Division of OHIM dismissed the opposition. However, the Board of Appeal annulled this decision, finding that RBI had provided sufficient proof of use of its earlier mark. Strategi Group Ltd appealed this decision to the General Court. The General Court examined the evidence of use submitted by RBI, considering whether it met the requirements of Article 43(2) of Regulation (EC) No 40/94 and Rule 22 of Regulation (EC) No 2868/95. The Court found that the evidence submitted by RBI was sufficient to demonstrate genuine use of the earlier mark Stratégies for at least some of the goods and services covered by the registration, particularly for services in Class 35. Consequently, the General Court dismissed the action brought by Strategi Group Ltd, upholding the Board of Appeal's decision.</td></tr>
<tr><td colspan="4">Correct label: Label 2 – Substantially relevant
- The query case addresses EU trade mark law and, more specifically, the likelihood of confusion under article 8(1)(b) of Regulation 207/2009.
- The candidate case also concerns EU trade mark opposition proceedings, but is more about demonstrating proof of genuine use of an earlier mark as a condition for opposing another trade mark registration.

Label 0 – Not relevant
1. Does the candidate case belong to a clearly different area of EU law than the query case? No, both cases involve trade mark law
2. Does the candidate case address a wholly different legal issue from the query case. No, both cases involve opposition proceedings
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. No, there is a clear overlap between both cases
Not all answers are "yes" → Proceed to the next label

Label 1 – Marginally relevant</td></tr>
</table>

1. Do the cases share a broad legal field (e.g., both within EU law or same general domain)? ***Yes**, EU trade mark law*
2. Are the legal issues nevertheless different in substance (e.g., admissibility vs. substantive rights)? ***Yes**, assessment of the likelihood of confusion versus proof of genuine use of an earlier mark*
3. Is the overlap limited to the general context rather than the specific legal reasoning or doctrine? ***No**, both involve procedural and substantive requirements for opposing trade marks*

Not all answers are "yes" → Proceed to the next label

Label 2 – Substantially relevant

1. Do both cases fall within the same specific area of law and regulatory framework? ***Yes**, opposition proceedings for a trade mark*
2. Do they address related legal issues or apply similar legal principles (even if not identical)? ***Yes**, opposition proceedings*
3. Is there meaningful overlap in reasoning, interpretation, or methodology that could assist in resolving the query case? ***Yes**, they both involve an assessment of opposition requirements*
4. Do they differ in terms of the legal question that is being asked or the provision that is being interpreted? ***Yes**, one case is about article 8(1)(b) (likelihood of confusion) while the other is about proof of use*

All answers are "yes" → The correct label is found

→ The candidate case is not directly addressing "likelihood of confusion", but it is doctrinally close since it addresses another component of trade mark opposition proceedings. This makes the candidate case substantially (but not directly) relevant to the query case.

F. Query-candidate pair 6

<table>
<tr><th colspan="4">Example 6</th></tr>
<tr><td>Query ID
ECLI:EU:C:2004:119</td><td>Query date
04/03/2004</td><td>Candidate ID
ECLI:EU:C:2018:512</td><td>Candidate date
28/06/2018</td></tr>
<tr><td colspan="2">Query title: Istituto nazionale della previdenza sociale (INPS) v Alberto Barsotti and Others, Milena Castellani v Istituto nazionale della previdenza sociale (INPS) and Istituto nazionale della previdenza sociale (INPS) v Anna Maria Venturi</td><td colspan="2">Candidate title: Eva Soraya Checa Honrado v Fondo de Garantía Salarial</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">This case involves three references for preliminary rulings from Italian courts concerning the interpretation of Council Directive 80/987/EEC on the protection of employees in the event of their employer's insolvency. The core issue revolves around the extent of liability of national guarantee institutions (managed by the INPS in Italy) for employees' outstanding claims. Specifically, the Court was asked whether national legislation could limit this liability to cover only 'basic needs' and, crucially, whether payments already made by the employer to the employee during the relevant period could be deducted from the guarantee institution's liability, particularly from the statutory ceiling. The Court interpreted Articles 3(1) and 4(3) of the Directive to mean that while Member States can set a ceiling on liability, they must ensure payment of all outstanding claims within that limit. Part payments received by employees should be deducted to determine the remaining outstanding claims, but a rule that aggregates employer payments against the ceiling, thereby reducing the guarantee institution's payout, undermines the minimum protection guaranteed by the directive and its social objective. The Court concluded that such a rule against aggregation is not permissible.</td><td colspan="2">The case involves Eva Soraya Checa Honrado, who terminated her employment contract after her employer, Soroma SL, decided to transfer her workplace to a location requiring a change of residence. She sought severance pay guaranteed by the Spanish Wages Guarantee Fund (Fogasa) under Article 33(2) of the Workers' Statute. However, Fogasa refused, arguing that this specific type of termination, stemming from a workplace transfer under Article 40 of the Workers' Statute, was not covered by the statute's provision for guaranteed severance pay, unlike terminations under Articles 50 to 52. The referring court questioned whether this exclusion violated EU law, specifically Directive 2008/94/EC, and the principle of equal treatment. The Court of Justice ruled that if national law considers certain forms of severance pay (e.g., for dismissals on objective grounds or worker-initiated termination due to employer's serious breach) as covered by Article 3 of the Directive, then severance pay arising from a worker's termination due to a workplace transfer that necessitates relocation must also be covered, as the situations are comparable and the exclusion is not objectively justified under EU law.</td></tr>
<tr><td colspan="4">Correct label: Label 1 – Marginally relevant
- The query case is on the liability limits of a guarantee institution for employees' claims in employer insolvency cases. It is thus about EU labor law.
- The candidate case is about a guarantee institution needing to cover severance pay when an employer transfers the workplace of the employee. It therefore also pertains to EU labor law.

Label 0 – Not relevant
1. Does the candidate case belong to a clearly different area of EU law than the query case? No, both involve EU labor law
2. Does the candidate case address a wholly different legal issue from the query case. No, both concern employee claims and guarantee institutions
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. No, there is at least some overlap between both (i.e., payouts by wage guarantee institutions)
Not all answers are "yes" → Proceed to the next label

Label 1 – Marginally relevant</td></tr>
</table>

1. Do the cases share a broad legal field (e.g., both within EU law or same general domain)? ***Yes**, EU labor law*
2. Are the legal issues nevertheless different in substance (e.g., admissibility vs. substantive rights)? ***Yes**, one case is about liability calculations and the other is about which claims are covered under the scope of the guarantee institution*
3. Is the overlap limited to the general context rather than the specific legal reasoning or doctrine? ***Yes**, it follows that the overall is fairly contextual and that there is not much doctrinal alignment*

All answers are "yes" → The correct label is found

→ The candidate case offers some contextual insights for the query case, but does not address the specific issue of liability calculations in the query case.

G. Query-candidate pair 7

<table>
<tr><th colspan="4">Example 7</th></tr>
<tr><td>Query ID
ECLI:EU:T:2017:290</td><td>Query date
28/04/2017</td><td>Candidate ID
ECLI:EU:T:2016:483</td><td>Candidate date
15/09/2016</td></tr>
<tr><td colspan="2">Query title: Gameart sp. z o.o. v European Commission</td><td colspan="2">Candidate title: Philip Morris Ltd v European Commission</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">The applicant, Gameart sp. z o.o., requested access to documents from the Polish Ministry of Foreign Affairs (MFA) concerning an infringement procedure initiated by the Commission against Poland regarding its gaming law. The MFA forwarded the request to the Commission under Article 5 of Regulation (EC) No 1049/2001. The Commission refused access, citing exceptions related to ongoing investigations. Gameart challenged the Commission's decision, arguing it lacked competence to handle requests for documents originating from a Member State. The General Court agreed, finding that Article 5 of the Regulation only applies to documents originating from EU institutions and that the Commission's competence was not established. The Court annulled the Commission's decision, noting that the applicant had a legal interest in challenging the decision to prevent future similar refusals and that the annulment would prompt Polish authorities to re-examine the request under national law. The Commission was ordered to pay costs.</td><td colspan="2">Philip Morris Ltd applied to the European Commission for access to documents concerning the legislative procedure for the Tobacco Products Directive (TPD). The Commission granted partial access, refusing full access to six documents based on exceptions for legal advice, court proceedings, and the decision-making process, and finding no overriding public interest in disclosure. Philip Morris challenged this decision, arguing the Commission failed to provide adequate reasons and that the exceptions were not properly applied. The General Court examined the Commission's reasoning for each exception. For Document No 1 (Legal Service opinion), the Court found the Commission's reasoning regarding the protection of legal advice and the potential impact on future court proceedings to be justified, considering the pending legal challenges to the TPD. For Documents Nos 3-7 (internal deliberations), the Court found the exception for court proceedings applicable due to the foreseeable legal challenges and the need to protect the Commission's defensive position and ensure equality of arms. The Court concluded that the Commission's statement of reasons was adequate and rejected the pleas alleging infringement of the exceptions. Consequently, the action was dismissed.</td></tr>
<tr><td colspan="4">Correct label: Label 2 – Substantially relevant
- The query case concerns access to documents under Regulation 1049/2001 and focuses on institutional competence and the origin of the documents (Member State versus EU institution)
- The candidate case also concerns access to documents but focuses on the application of exceptions and the adequacy of reasoning.

Label 0 – Not relevant
1. Does the candidate case belong to a clearly different area of EU law than the query case? No, both cases relate to access to documents under EU law
2. Does the candidate case address a wholly different legal issue from the query case. No, both cases concern a refusal of access
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. No, there is a clear overlap between both cases
Not all answers are "yes" → Proceed to the next label

Label 1 – Marginally relevant
1. Do the cases share a broad legal field (e.g., both within EU law or same general domain)? Yes, access to documents
2. Are the legal issues nevertheless different in substance (e.g., admissibility vs. substantive rights)? Yes, a lack of competence versus the adequacy of the reasons for refusing access</td></tr>
</table>

3. Is the overlap limited to the general context rather than the specific legal reasoning or doctrine? ***No**, both cases clearly go beyond a general contextual overlap*

Not all answers are "yes" → Proceed to the next label

Label 2 – Substantially relevant

1. Do both cases fall within the same specific area of law and regulatory framework? ***Yes**, both cases seem to be treated under the same legal framework*
2. Do they address related legal issues or apply similar legal principles (even if not identical)? ***Yes**, both concern lawful refusal of access*
3. Is there meaningful overlap in reasoning, interpretation, or methodology that could assist in resolving the query case? ***Yes**, both involve an interpretation of exceptions*
4. Do they differ in terms of the legal question that is being asked or the provision that is being interpreted? ***Yes**, one case is about competence, whereas the other is about substantive exceptions*

All answers are "yes" → The correct label is found

→ The candidate case does not address the same specific legal issue (competence), but it provides closely related reasoning on refusal grounds and the interpretation of Regulation 1049/2001 that is mentioned in the query case.

H. Query-candidate pair 8

<table>
<tr><th colspan="4">Example 8</th></tr>
<tr><td>Query ID
ECLI:EU:F:2014:224</td><td>Query date
25/09/2014</td><td>Candidate ID
ECLI:EU:T:1998:99</td><td>Candidate date
14/05/1998</td></tr>
<tr><td colspan="2">Query title: Bruno Julien-Malvy and Others v European External Action Service (EEAS)</td><td colspan="2">Candidate title: Finnish Board Mills Association - Finnboard v Commission of the European Communities</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">This case was brought by staff of the European External Action Service (EEAS) assigned to third countries, challenging a decision that abolished their allowance for living conditions (ALC) from 1 January 2014. The applicants argued that the decision was unlawful due to the lack of implementing general provisions (GIP) as required by the Staff Regulations, inadequate statement of grounds, manifest errors in assessing living conditions, misuse of powers, and infringement of the principle of legitimate expectations. The Tribunal found the action admissible, stating that the decision was a measure of general application that directly affected the applicants' legal position. However, it rejected the applicants' claims. The Tribunal ruled that while the EEAS had an obligation to adopt GIP, the absence of these provisions did not invalidate the decision, as the underlying article of the Staff Regulations was sufficiently clear and the EEAS was in a transitional period. The Tribunal also found the statement of grounds adequate for a measure of general application and rejected claims of manifest error in assessing living conditions, misuse of powers, and infringement of legitimate expectations, noting the appointing authority's discretion and the deferral of the decision's entry into force. The claims for an injunction ordering payment of the ALC were dismissed as inadmissible. Consequently, the action was dismissed.</td><td colspan="2">The Court of First Instance ruled on a challenge by Finnboard against a Commission decision imposing fines for cartel activity in the cartonboard market. Finnboard contested the decision on several grounds, including language rules, procedural irregularities in the statement of objections and decision notification, insufficient reasoning, and errors in fine calculation. The Court rejected most of Finnboard's arguments, finding that the Commission had followed proper procedures regarding language and notification, and that the statement of objections and the decision provided sufficient reasoning. The Court also upheld the Commission's finding of Finnboard's participation in price-fixing and market-sharing collusion, rejecting claims of insufficient evidence. However, the Court partially annulled Article 2 of the Decision concerning the prohibition of certain information exchanges, finding it too broad. The Court also reviewed the fine calculation, largely upholding the Commission's methodology but noting the partial lack of proof for the cartel's success in achieving its objectives, which was considered in the overall assessment of the fine.</td></tr>
<tr><td colspan="4">Correct label: Label 0 – Not relevant
- The query case relates to allowances under EU staff law and the application of the principle of legitimate expectations.
- The candidate case is about EU competition law and cartel activity in the cartboard market

Label 0 – Not relevant
1. Does the candidate case belong to a clearly different area of EU law than the query case? Yes, EU staff law versus EU competition law
2. Does the candidate case address a wholly different legal issue from the query case. Yes, staff allowances and cartel liability
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. Yes, there is no meaningful overlap
All answers are "yes" → The correct label is found
→ The candidate case is about a completely different legal domain and addresses a wholly different issue. As such, it offers no guidance for resolving the query case.</td></tr>
</table>

I. Query-candidate pair 9

<table>
<tr><th colspan="4">Example 9</th></tr>
<tr><td>Query ID
ECLI:EU:T:2017:314</td><td>Query date
05/05/2017</td><td>Candidate ID
ECLI:EU:T:2017:381</td><td>Candidate date
08/06/2017</td></tr>
<tr><td colspan="2">Query title: Messe Friedrichshafen GmbH v European Union Intellectual Property Office</td><td colspan="2">Candidate title: Groupe Léa Nature v European Union Intellectual Property Office</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">Messe Friedrichshafen GmbH applied for an EU figurative mark 'Out Door'. El Corte Inglés opposed this application based on its earlier EU word mark 'OUTDOOR PRO', citing a relative ground for refusal under Article 8(1)(b) of Regulation No 207/2009. The opposition was partially upheld by the Opposition Division. The Board of Appeal of EUIPO annulled the Opposition Division's decision in part, confirming the refusal for certain services but allowing registration for others. Messe Friedrichshafen appealed this decision to the General Court, arguing that the Board of Appeal infringed Article 76 of Regulation No 207/2009 by not sufficiently considering the descriptiveness and weak distinctiveness of the earlier mark, and also infringed Article 8(1)(b) by finding a likelihood of confusion. The General Court rejected the first plea, finding that the Board of Appeal had adequately examined the evidence regarding the distinctiveness of the earlier mark and that arguments concerning absolute grounds for refusal were ineffective in opposition proceedings. The Court also rejected the second plea, finding that the Board of Appeal correctly assessed the visual, phonetic, and conceptual similarities between the marks and the relevant goods/services, leading to a likelihood of confusion for a significant part of the relevant public. The Court dismissed the action.</td><td colspan="2">Groupe Léa Nature applied to register the EU figurative mark 'SO'BiO ētic'. Debonair Trading Internacional opposed this application based on its earlier EU and national word marks 'SO…', citing relative grounds for refusal under Article 8(1)(b) (likelihood of confusion) and Article 8(5) (detriment to reputation) of the EU Trade Mark Regulation. The EUIPO Board of Appeal upheld the opposition, finding similarity between the signs and goods, and a likelihood of confusion, as well as a risk of detriment to reputation for certain goods. Groupe Léa Nature challenged this decision before the General Court. The General Court initially annulled the Board of Appeal's decision, finding no similarity between the signs. However, the Court of Justice set aside this judgment due to a failure to state reasons regarding the distinctiveness of the common element 'so'. Following referral back to the General Court, this judgment re-examines the similarity of the signs, concluding they are visually and phonetically similar to a certain extent. The Court confirms the Board of Appeal's finding of a likelihood of confusion for identical or similar goods, considering the reputation of the earlier marks and the conflicting nature of some goods. The plea regarding detriment to reputation is also dismissed as the applicant failed to convincingly challenge the Board's findings on the earlier marks' reputation and the risk of tarnishment. Consequently, the action is dismissed.</td></tr>
<tr><td colspan="4">Correct label: Label 3 – Directly relevant
- The query case concerns an EU trade mark opposition under Article 8(1)(b). The case looks into the likelihood of confusion and an assessment of similarity and distinctiveness.
- The candidate case also concerns an EU trade mark opposition under Article 8(1)(b) and equally addresses the likelihood of confusion and reputational impact. There is a detailed assessment of similarity and distinctiveness.

Label 0 – Not relevant
1. Does the candidate case belong to a clearly different area of EU law than the query case? No, both cases relate to EU trade mark law
2. Does the candidate case address a wholly different legal issue from the query case. No, both cases involve a "likelihood of confusion" analysis
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. No, there is clearly an overlap in terms of the principles, reasoning and facts
Not all answers are "yes" → Proceed to the next label

Label 1 – Marginally relevant</td></tr>
</table>

1. Do the cases share a broad legal field (e.g., both within EU law or same general domain)? ***Yes.***
2. Are the legal issues nevertheless different in substance (e.g., admissibility vs. substantive rights)? ***No****, they both assess the likelihood of confusion for the most part*
3. Is the overlap limited to the general context rather than the specific legal reasoning or doctrine? ***No****, the overlap is well beyond the general context*

Not all answers are "yes" → Proceed to the next label

Label 2 – Substantially relevant

1. Do both cases fall within the same specific area of law and regulatory framework? ***Yes***
2. Do they address related legal issues or apply similar legal principles (even if not identical)? ***Yes****, namely the similarity of signs and the likelihood of confusion*
3. Is there meaningful overlap in reasoning, interpretation, or methodology that could assist in resolving the query case? ***Yes****, both cases feature the same comparative analysis*
4. Do they differ in terms of the legal question that is being asked or the provision that is being interpreted? ***No****, the legal question is essentially the same*

Not all answers are "yes" → Proceed to the next label

Label 3 – Directly relevant

1. Do both cases concern the same specific legal provision or closely related provisions? ***Yes****, article 8(1)(b)*
2. Do they address essentially the same legal question or problem? ***Yes****, the likelihood of confusion*
3. Do they apply the same legal test, principles, or doctrinal framework? ***Yes****, yes, analysis of confusion*
4. Would the reasoning in the candidate case directly guide or resolve the issue in the query case? ***Yes****, the reasoning is directly transferrable*

All answers are "yes" → The correct label is found

→ The candidate case applies the same legal test to a closely comparable factual situation and would serve as a direct authority for resolving the query case.

J. Query-candidate pair 10

<table>
<tr><th colspan="4">Example 10</th></tr>
<tr><td>Query ID
ECLI:EU:C:2024:868</td><td>Query date
04/10/2024</td><td>Candidate ID
ECLI:EU:C:2011:865</td><td>Candidate date
21/12/2011</td></tr>
<tr><td colspan="2">Query title: C v Staatssecretaris van Justitie en Veiligheid</td><td colspan="2">Candidate title: N. S. v Secretary of State for the Home Department and M. E. and Others v Refugee Applications Commissioner and Minister for Justice, Equality and Law Reform</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">This case involves a preliminary ruling request concerning the detention of a third-country national, C, in the Netherlands. C was initially detained under the Dublin III Regulation pending transfer to Spain. When Spain rejected the transfer request, C remained detained, and a new detention measure was imposed under Directive 2008/115/EC for removal purposes. C argued that the initial detention became unlawful due to the rejection of the transfer request and the subsequent delay in imposing a new, lawful detention measure, thus requiring his immediate release. The referring court questioned whether the unlawfulness of the first detention measure automatically invalidates the second, continuous detention, and whether national legislation that does not mandate immediate release in such circumstances complies with EU law and the Charter of Fundamental Rights. The Court of Justice, applying the urgent preliminary ruling procedure due to C's ongoing detention, clarified that the unlawfulness of a detention measure under the Dublin III Regulation does not automatically affect the lawfulness of a subsequent, independently justified detention measure under Directive 2008/115. It emphasized that while detention must be lawful and subject to judicial review, and immediate release is required if detention becomes unlawful, a new, lawful detention measure can be imposed if justified, even if the previous one was flawed, provided there is no bad faith or deception by the authorities and the measures are proportionate. The Court concluded that national legislation not requiring immediate release solely due to a prior unlawful detention, when a subsequent lawful measure exists, is not precluded by EU law, provided the overall system ensures effective judicial protection and compensation for any unlawful detention.</td><td colspan="2">This case involves two references for preliminary rulings concerning the interpretation of the Dublin Regulation (No 343/2003) and EU fundamental rights. The core issue is whether a Member State can transfer an asylum seeker to another Member State identified as responsible under the Dublin Regulation without assessing the asylum seeker's risk of suffering inhuman or degrading treatment due to systemic deficiencies in the responsible Member State's asylum procedures or reception conditions. The Court of Justice ruled that an irrebuttable presumption of compliance with fundamental rights by the responsible Member State is precluded by EU law. Member States must not transfer asylum seekers if they are aware of substantial grounds indicating a real risk of inhuman or degrading treatment. If a transfer is impossible due to such risks, the transferring Member State must continue to apply the Dublin criteria to find another responsible Member State or, if necessary, examine the asylum application itself. The Court also clarified that the EU Charter of Fundamental Rights offers protection that is at least equivalent to, and in some aspects wider than, the ECHR, and that Protocol No 30 does not exempt the UK from these obligations.</td></tr>
<tr><td colspan="4">Correct label: Label 2 – Substantially relevant
- The query case involves EU asylum and migration law and considers detention under the Dublin III Regulation (and also the Return Directive) and the consequences of unlawful detention.
- The candidate case also concerns the regime of the Dublin III Regulation but is more focused on limits to transfers where there exists a risk of inhuman or degrading treatment.

Label 0 – Not relevant</td></tr>
</table>

1. Does the candidate case belong to a clearly different area of EU law than the query case? ***No**, both cases involve EU asylum law*
2. Does the candidate case address a wholly different legal issue from the query case. ***No**, both cases feature the Dublin III Regulation*
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. ***No**, there is a clear overlap between both cases*

Not all answers are "yes" → Proceed to the next label

Label 1 – Marginally relevant

1. Do the cases share a broad legal field (e.g., both within EU law or same general domain)? ***Yes**, EU asylum law*
2. Are the legal issues nevertheless different in substance (e.g., admissibility vs. substantive rights)? ***Yes**, on the one hand the legality of detention and on the other hand a transfer prohibition*
3. Is the overlap limited to the general context rather than the specific legal reasoning or doctrine? ***No**, both cases clearly go beyond a general contextual overlap, both invoke fundamental rights reasoning*

Not all answers are "yes" → Proceed to the next label

Label 2 – Substantially relevant

1. Do both cases fall within the same specific area of law and regulatory framework? ***Yes**, the Dublin III Regulation*
2. Do they address related legal issues or apply similar legal principles (even if not identical)? ***Yes**, both concern related issues under fundamental rights*
3. Is there meaningful overlap in reasoning, interpretation, or methodology that could assist in resolving the query case? ***Yes**, both involve a fundamental rights analysis*
4. Do they differ in terms of the legal question that is being asked or the provision that is being interpreted? ***Yes**, one case is about the continuing of detection and the other is about a prohibition of a transfer*

All answers are "yes" → The correct label is found

→ The candidate case does not deal with detention, but its reasoning on fundamental rights constraints within the Dublin system is closely applicable to that of the query case.

III. Individual calibration set

Annotators then complete a short individual calibration exercise consisting of 15 query-candidate pairs. These cases should be annotated individually, without discussion, in order to assess each annotator's independent application of the guidelines.

Once all annotations have been submitted, the results will be compared against the reference labels. In addition, overall agreement statistics are presented to provide insight into the level of consistency across annotators.

The purpose of this exercise is to evaluate readiness for the main annotation task and to identify any remaining areas where further clarification or support may be needed.

A. Query-candidate pair 1

<table>
<tr><th colspan="4">Example 1</th></tr>
<tr><td>Query ID
ECLI:EU:T:2010:171</td><td>Query date
29/04/2010</td><td>Candidate ID
ECLI:EU:T:2002:244</td><td>Candidate date
09/10/2002</td></tr>
<tr><td colspan="2">Query title: Kerma SpA v Office for Harmonisation in the Internal Market (Trade Marks and Designs) (OHIM)</td><td colspan="2">Candidate title: Dart Industries Inc. v Office for Harmonisation in the Internal Market (Trade Marks and Designs) (OHIM)</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">Kerma SpA applied to register the word mark BIOPIETRA for goods in Class 19. The Office for Harmonisation in the Internal Market (OHIM) refused the application based on Article 7(1)(b) of Regulation (EC) No 40/94, which states that marks devoid of any distinctive character shall be refused registration. The First Board of Appeal of OHIM dismissed Kerma's appeal. Kerma then brought an action before the General Court of the European Union. The General Court examined whether the mark BIOPIETRA possessed sufficient distinctive character to be registered as a Community trade mark. The Court considered the mark in relation to the goods in Class 19, which include building materials. The Court concluded that the mark was descriptive and lacked the necessary distinctiveness, thus upholding OHIM's decision. Consequently, the action was dismissed.</td><td colspan="2">Dart Industries Inc. applied to register 'UltraPlus' as a Community trade mark for plastic ovenware. The examiner and the OHIM Board of Appeal refused registration, considering the mark to be descriptive and lacking distinctiveness under Articles 7(1)(b) and (c) of Regulation No 40/94. The applicant argued that 'UltraPlus' is an invented word with no direct meaning and should be registrable. The Court of First Instance found that the Board of Appeal erred in concluding that 'UltraPlus' directly designated the goods or their characteristics, as the term is evocative rather than descriptive. The Court also found that the Board failed to properly assess the distinctiveness of the mark, considering its unusual juxtaposition and lack of common usage for ovenware. Therefore, the Court annulled the contested decision, finding that the mark did not fall under the absolute grounds for refusal.</td></tr>
<tr><td colspan="4">Correct label: Label 3 – Directly relevant
- The query case relates to EU trade mark law. The main discussion centers on the assessment of distinctiveness as an absolute ground for refusal under article 7(1)(b) of Regulation 40/94.
- The candidate case also relates to EU trade mark law and it also discusses the distinctiveness/descriptiveness of an application under article 7(1)(b) and (c) of Regulation 40/94.

Label 0 – Not relevant
1. Does the candidate case belong to a clearly different area of EU law than the query case? No, both cases relate to EU trade mark law
2. Does the candidate case address a wholly different legal issue from the query case. No, both deal with the distinctiveness of trade marks
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. No, there is clearly an overlap in terms of the principles, reasoning and facts
Not all answers are "yes" → Proceed to the next label

Label 1 – Marginally relevant
1. Do the cases share a broad legal field (e.g., both within EU law or same general domain)? Yes.
2. Are the legal issues nevertheless different in substance (e.g., admissibility vs. substantive rights)? No, they both deal with the distinctiveness of trade marks
3. Is the overlap limited to the general context rather than the specific legal reasoning or doctrine? No, the overlap is well beyond the general context and is clearly also doctrinal and factual
Not all answers are "yes" → Proceed to the next label

Label 2 – Substantially relevant
1. Do both cases fall within the same specific area of law and regulatory framework? Yes, Regulation 40/94 and article 7 to be specific</td></tr>
</table>

2. Do they address related legal issues or apply similar legal principles (even if not identical)? ***Yes**, both cases feature an assessment of distinctiveness*
3. Is there meaningful overlap in reasoning, interpretation, or methodology that could assist in resolving the query case? ***Yes**, both apply the same criteria to evaluate the trade marks*
4. Do they differ in terms of the legal question that is being asked or the provision that is being interpreted? ***No**, the legal question is essentially the same*

Not all answers are "yes" → Proceed to the next label

Label 3 – Directly relevant

1. Do both cases concern the same specific legal provision or closely related provisions? ***Yes**, article 7(1)(b)*
2. Do they address essentially the same legal question or problem? ***Yes**, the distinctiveness of a trade mark*
3. Do they apply the same legal test, principles, or doctrinal framework? ***Yes**, yes, analysis of the distinctiveness*
4. Would the reasoning in the candidate case directly guide or resolve the issue in the query case? ***Yes**, the reasoning is directly transferrable*

All answers are "yes" → The correct label is found

→ The candidate case applies the same legal test to a comparable factual situation and would serve as a direct authority for resolving the query case.

B. Query-candidate pair 2

<table>
<tr><th colspan="4">Example 2</th></tr>
<tr><td>Query ID
ECLI:EU:C:1980:202</td><td>Query date
11/07/1980</td><td>Candidate ID
ECLI:EU:C:2015:783</td><td>Candidate date
26/11/2015</td></tr>
<tr><td colspan="2">Query title: Hauptzollamt Köln-Rheinau v Chem-Tec</td><td colspan="2">Candidate title: Hauptzollamt Frankfurt am Main v Duval GmbH & Co. KG</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">The Bundesfinanzhof (Federal Finance Court) of Germany referred a question to the Court of Justice regarding the interpretation of Common Customs Tariff heading 90.18, specifically concerning 'breathing appliances (including gas masks and similar respirators)'. The case involved filter masks intended for single use, designed to protect against dust and toxic chemicals. The German customs office initially classified these masks under heading 90.18 but later reclassified them under heading 59.03 (bonded fibre fabrics), leading to higher customs duties. The Court considered the Explanatory Notes of the Customs Cooperation Council and opinions of the Committee on Common Customs Tariff Nomenclature as aids to interpretation, while emphasizing their non-binding nature. The Court concluded that the term 'breathing appliances' is broad and includes simple filter masks that protect the mouth and nose, facilitating breathing, even if they are for single use. Therefore, such masks fall under heading 90.18.</td><td colspan="2">The case involves the classification of 'thermo papers' and 'thermo labels', which are single-use indicators that change colour irreversibly when a predetermined temperature threshold is reached. The German customs authority classified them under heading 3824 (miscellaneous chemical products), while the importer, Duval, argued for classification under heading 4823 (paper articles) or 9025 (thermometers). The referring court questioned whether these indicators, which measure temperature by colour change and are not reusable or continuously indicating, fall under the definition of 'thermometer' in heading 9025 of the Combined Nomenclature (CN). The Court of Justice ruled that heading 9025 covers such indicators, as their primary function is temperature measurement, and the CN's scope is broad enough to include single-use, irreversible colour-change indicators. The Court also clarified that the HS Explanatory Notes are not exhaustive and that the specific function of temperature measurement, even if simple and single-use, is sufficient for classification under heading 9025, taking precedence over more general headings like 3824 or 4823.</td></tr>
<tr><td colspan="4">Correct label: Label 2 – Substantially relevant
- The query case relates to EU customs law and the classification/reclassification of breathing appliances under the correct tariff heading
- The candidate is equally about EU customs laws and focuses on determining the correct tariff heading based on the function of a product (here: thermo labels).

Label 0 – Not relevant
1. Does the candidate case belong to a clearly different area of EU law than the query case? No, they both concern EU customs law
2. Does the candidate case address a wholly different legal issue from the query case. No, both concern the classification of goods under the proper tariff headings
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. No, they both apply a clearly similar approach to classification
Not all answers are "yes" → Proceed to the next label

Label 1 – Marginally relevant
1. Do the cases share a broad legal field (e.g., both within EU law or same general domain)? Yes, EU customs law
2. Are the legal issues nevertheless different in substance (e.g., admissibility vs. substantive rights)? No, both cases are about finding the correct tariff classification
3. Is the overlap limited to the general context rather than the specific legal reasoning or doctrine? No, they both apply a very similar interpretative approach to the classification exercise</td></tr>
</table>

Not all answers are "yes" → Proceed to the next label

Label 2 – Substantially relevant

1. Do both cases fall within the same specific area of law and regulatory framework? ***Yes***, *tariff classification under the Customs Tariff Nomenclature*
2. Do they address related legal issues or apply similar legal principles (even if not identical)? ***Yes***, *the correct tariff classification based on product characteristics*
3. Is there meaningful overlap in reasoning, interpretation, or methodology that could assist in resolving the query case? ***Yes***, *both involve an interpretation of the tariff nomenclature*
4. Do they differ in terms of the legal question that is being asked or the provision that is being interpreted? ***Yes***, *the query is about a reclassification, while the candidate is about finding the correct tariff heading based on a product's function and both cases deal with different product categories.*

All answers are "yes" → The correct label is found

→ The candidate case applies the same classification methodology and interpretative principles, but the underlying question differs somewhat.

C. Query-candidate pair 3

<table>
<tr><th colspan="4">Example 3</th></tr>
<tr><td>Query ID
ECLI:EU:F:2014:224</td><td>Query date
25/09/2014</td><td>Candidate ID
ECLI:EU:T:1998:103</td><td>Candidate date
14/05/1998</td></tr>
<tr><td colspan="2">Query title: Bruno Julien-Malvy and Others v European External Action Service (EEAS)</td><td colspan="2">Candidate title: Mo Och Domsjö AB v Commission of the European Communities</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">This case was brought by staff of the European External Action Service (EEAS) assigned to third countries, challenging a decision that abolished their allowance for living conditions (ALC) from 1 January 2014. The applicants argued that the decision was unlawful due to the lack of implementing general provisions (GIP) as required by the Staff Regulations, inadequate statement of grounds, manifest errors in assessing living conditions, misuse of powers, and infringement of the principle of legitimate expectations. The Tribunal found the action admissible, stating that the decision was a measure of general application that directly affected the applicants' legal position. However, it rejected the applicants' claims. The Tribunal ruled that while the EEAS had an obligation to adopt GIP, the absence of these provisions did not invalidate the decision, as the underlying article of the Staff Regulations was sufficiently clear and the EEAS was in a transitional period. The Tribunal also found the statement of grounds adequate for a measure of general application and rejected claims of manifest error in assessing living conditions, misuse of powers, and infringement of legitimate expectations, noting the appointing authority's discretion and the deferral of the decision's entry into force. The claims for an injunction ordering payment of the ALC were dismissed as inadmissible. Consequently, the action was dismissed.</td><td colspan="2">The Court of First Instance reviewed a Commission decision that imposed fines on cartonboard producers, including Mo Och Domsjö AB (MoDo), for participating in a cartel that restricted competition through price fixing, market sharing, and coordinated downtime. MoDo contested the decision on several grounds, including defects in the statement of reasons, infringement of its rights of defence, incorrect assessment of the infringement's scope and gravity, disproportionate fines, and its role within the cartel. The Court rejected most of MoDo's arguments, finding that the Commission had adequately stated its reasons and that MoDo's rights of defence were not infringed. It upheld the Commission's finding that the cartel covered GC, GD, and SBS cartonboard and that MoDo, through its subsidiaries, participated in the collusion. However, the Court annulled parts of Article 2 of the Commission's decision concerning future information exchanges, finding them too broad. While acknowledging some errors in the Commission's assessment of the cartel's effects and the applicant's cooperation, the Court ultimately dismissed the application for annulment or reduction of the fine, finding the imposed penalty proportionate.</td></tr>
<tr><td colspan="4">Correct label: Label 0 – Not relevant
- The query case relates to allowances under EU staff law and the application of the principle of legitimate expectations.
- The candidate case is about EU competition law and cartel activity in the cartboard market

Label 0 – Not relevant
1. Does the candidate case belong to a clearly different area of EU law than the query case? Yes, EU staff law versus EU competition law
2. Does the candidate case address a wholly different legal issue from the query case. Yes, staff allowances and cartel liability
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. Yes, there is no meaningful overlap
All answers are "yes" → The correct label is found
→ The candidate case is about a completely different legal domain and addresses a wholly different issue. As such, it offers no guidance for resolving the query case.</td></tr>
</table>

D. Query-candidate pair 4

<table>
<tr><th colspan="4">Example 4</th></tr>
<tr><td>Query ID
ECLI:EU:C:1995:266</td><td>Query date
11/08/1995</td><td>Candidate ID
ECLI:EU:C:2011:507</td><td>Candidate date
21/07/2011</td></tr>
<tr><td colspan="2">Query title: Cavarzere Produzioni Industriali SpA and others v Ministero dell'Agricoltura e delle Foreste and others</td><td colspan="2">Candidate title: Bureau d'intervention et de restitution belge v Beneo-Orafti SA</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">This preliminary ruling request from the Italian Consiglio di Stato concerns the interpretation of EU regulations on the common organization of the sugar market, specifically Regulation No 1785/81 and Regulation No 193/82. The case involves disputes over the allocation of sugar production quotas for several marketing years, particularly concerning the adjustment of quotas for undertakings following the transfer of factories and the exercise of Member States' 'power of manoeuvre' to adjust quotas. The Court was asked whether the 1 March deadline for exercising this power was mandatory, even if related EU regulations were adopted late. It also questioned the relationship between general quota transfer rules and the power of manoeuvre, how the 10% adjustment limit applies to A and B quotas, the basis for calculating quotas subject to adjustment, and the definition of 'restructuring plans' that could allow for exceeding the 10% limit in Italy. The Court ruled that the 1 March deadline is mandatory and cannot be implicitly extended. It clarified that the power of manoeuvre can be exercised concurrently with quota adjustments following transfers, provided each provision's conditions are met. The 10% limit applies to each quota (A and B) individually, and the base for calculation is the quota originally allocated by the Member State. Finally, 'restructuring plans' refer to sector-wide plans at national or regional levels, not just individual company plans.</td><td colspan="2">This preliminary ruling request from a Belgian court concerns the EU's temporary restructuring scheme for the sugar industry. The case involves Beneo-Orafti, a sugar producer that received restructuring aid but continued production using its transitional quota, which the Bureau d'intervention et de restitution belge (BIRB) deemed a breach of its commitments. The court sought clarification on whether transitional quotas fall under the restructuring scheme, when commitments to renounce quotas take effect, how penalties for non-compliance are calculated, and whether multiple penalties (aid recovery, penalty, levy) violate the ne bis in idem, proportionality, or non-discrimination principles. The Court of Justice ruled that transitional quotas are indeed covered by the restructuring scheme, that commitments take effect when the undertaking knows the aid conditions are met, and that cumulative penalties are permissible as they serve different objectives and not all constitute 'penalties' in the strict sense of ne bis in idem. The Court also provided guidance on calculating the recovered aid based on the specific breached commitment.</td></tr>
<tr><td colspan="4">Correct label: Label 1 – Marginally relevant
- The query case is on the topic of EU agricultural law and looks into the substantive interpretation of regulations governing sugar production quotas and Member States' powers to adjust these quotas.
- The candidate case concerns restructuring schemes, compliance obligations, and penalties within the sugar sector.

Label 0 – Not relevant
1. Does the candidate case belong to a clearly different area of EU law than the query case? No, they both concern EU agricultural law/the sugar market in the EU
2. Does the candidate case address a wholly different legal issue from the query case. Yes, one is about the allocation of quotas and MS' power of manoeuvre, and the other is about quotas under a restructuring scheme
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. No, there is some contextual overlap in terms of the sugar market and discussions on quotas
Not all answers are "yes" → Proceed to the next label</td></tr>
</table>

Label 1 – Marginally relevant

1. Do the cases share a broad legal field (e.g., both within EU law or same general domain)? ***Yes**, the EU's common agricultural policy*
2. Are the legal issues nevertheless different in substance (e.g., admissibility vs. substantive rights)? ***Yes**, quota adjustment powers versus restructuring obligations*
3. Is the overlap limited to the general context rather than the specific legal reasoning or doctrine? ***Yes**, the overlap seems limited to the sector*

All answers are "yes" → The correct label is found

→ The candidate case might provide a bit of context on the regulatory environment of the sugar sector, but it does not assist with the specific legal questions raised in the query case.

E. Query-candidate pair 5

<table>
<tr><th colspan="4">Example 5</th></tr>
<tr><td>Query ID
ECLI:EU:C:1999:394</td><td>Query date
09/09/1999</td><td>Candidate ID
ECLI:EU:C:2003:216</td><td>Candidate date
10/04/2003</td></tr>
<tr><td colspan="2">Query title: Commission of the European Communities v Federal Republic of Germany</td><td colspan="2">Candidate title: Commission of the European Communities v Portuguese Republic</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">The Commission brought an action against Germany for failing to fulfil its obligations under Article 3(1) of Directive 75/439/EEC, as amended by Directive 87/101/EEC, concerning the disposal of waste oils. The directive requires Member States to give priority to the processing of waste oils by regeneration, where technically, economically, and organisationally feasible. The Commission argued that German law did not establish this priority, merely treating regeneration and thermal processing equally, and that Germany had not demonstrated the existence of any such constraints that would preclude giving priority to regeneration. The German Government contended that its existing legislation, particularly the Altölverordnung, provided sufficient priority and that technical, economic, and organisational constraints justified its approach. The Court found that the German legislation did not expressly lay down a priority for regeneration and that the constraints cited by Germany were not sufficiently established or were not interpreted restrictively as required by the directive. The Court concluded that Germany had failed to fulfil its obligations.</td><td colspan="2">The Commission brought an action against Portugal for failing to properly transpose Directive 75/439/EEC on the disposal of waste oils. The Commission alleged that Portugal failed to ensure that permits for disposing of waste oils were conditional on appropriate health protection measures and the use of the best available technology. It also claimed that Portugal did not properly regulate the disposal of combustion residues according to EU waste directives and failed to conduct periodic inspections of undertakings. Furthermore, the Commission argued that Portugal did not periodically convey the required technical expertise and experience gained from applying the directive. The Court found that Portugal's national legislation, particularly concerning industrial permits and waste management, did not sufficiently guarantee the specific requirements of the directive, such as making permits conditional on health protection and best available technology, or ensuring periodic inspections and reporting. Consequently, the Court declared that Portugal had failed to fulfil its obligations under the directive.</td></tr>
<tr><td colspan="4">Correct label: Label 2 – Substantially relevant
- The query case pertains to a failure to fulfil obligations under EU law, relating to transposing a directive on waste oils. Germany did not provide for a priority mechanism under article 3(1)
- The candidate case also pertains to a failure to fulfil obligations relating to transposing Directive 75/439/EEC on waste oils. However, the emphasis here is on obligations relating to permits and health protection measures

Label 0 – Not relevant
1. Does the candidate case belong to a clearly different area of EU law than the query case? No, both involve EU environmental law
2. Does the candidate case address a wholly different legal issue from the query case. No, they both deal with Directive 75/439/EEC
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. No, there is a clear overlap between both cases
Not all answers are "yes" → Proceed to the next label

Label 1 – Marginally relevant
1. Do the cases share a broad legal field (e.g., both within EU law or same general domain)? Yes, EU environmental law
2. Are the legal issues nevertheless different in substance (e.g., admissibility vs. substantive rights)? Yes, regeneration priority versus broader implementation requirements relating to permits and health protection measures
3. Is the overlap limited to the general context rather than the specific legal reasoning or doctrine? No, both cases clearly go beyond a general contextual overlap, both are about a failure to fulfil obligations under the same directive</td></tr>
</table>

Not all answers are "yes" → Proceed to the next label

Label 2 – Substantially relevant

1. Do both cases fall within the same specific area of law and regulatory framework? ***Yes***, *Directive 75/439/EEC*
2. Do they address related legal issues or apply similar legal principles (even if not identical)? ***Yes***, *Member State obligations and the proper transposition of a directive*
3. Is there meaningful overlap in reasoning, interpretation, or methodology that could assist in resolving the query case? ***Yes***, *they both feature infringement proceedings*
4. Do they differ in terms of the legal question that is being asked or the provision that is being interpreted? ***Yes***, *the query and candidate case deal with different substantive obligations*

All answers are "yes" → The correct label is found

→ The candidate case is highly relevant in terms of the framework and methodology, but it does not address the same specific obligations (priority of regeneration versus permits and health protection measures), so it is substantially but not directly relevant.

F. Query-candidate pair 6

<table>
<tr><th colspan="4">Example 6</th></tr>
<tr><td>Query ID
ECLI:EU:C:1979:36</td><td>Query date
13/02/1979</td><td>Candidate ID
ECLI:EU:T:1992:36</td><td>Candidate date
10/03/1992</td></tr>
<tr><td colspan="2">Query title: Hoffmann-La Roche & Co. AG v Commission of the European Communities</td><td colspan="2">Candidate title: Montedipe SpA v Commission of the European Communities</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">The European Court of Justice reviewed a Commission decision that found Hoffmann-La Roche (Roche) abused its dominant position in several vitamin markets (A, B2, B3, B6, C, E, H) through exclusivity agreements and fidelity rebates. The Court upheld the Commission's findings regarding Roche's dominant position in most vitamin markets, based on significant market shares, technological advantages, and extensive sales networks, while rejecting the finding for Vitamin B3 due to insufficient evidence. The Court confirmed that exclusivity agreements and fidelity rebates, even with 'English clauses' (allowing customers to seek better offers from competitors if Roche did not match them), constitute an abuse of a dominant position under Article 86 of the EEC Treaty because they restrict competition and customer choice. The Court also addressed procedural issues, particularly the right to be heard, finding that while the Commission had initially withheld some data due to professional secrecy, the subsequent disclosure and agreement on data during the Court proceedings rectified any procedural irregularities. The Court reduced Roche's fine from 300,000 to 200,000 units of account, considering the limited duration of the infringement and the company's willingness to amend contracts.</td><td colspan="2">Montedipe SpA challenged a European Commission decision that fined it and other polypropylene producers for infringing Article 85(1) of the EEC Treaty through agreements and concerted practices aimed at fixing prices and controlling sales volumes between 1977 and 1983. Montedipe argued that the Commission breached its rights of defence, failed to prove the infringement, misapplied competition law by disregarding the economic context of crisis in the industry, and imposed a disproportionate fine. The Court of First Instance dismissed Montedipe's claims, finding that the Commission had sufficient evidence to establish the existence of a cartel, including price fixing and quota agreements, and that the economic situation did not justify such infringements. The Court also upheld the Commission's assessment of the fines, finding them appropriate given the gravity and duration of the infringement and the need for a deterrent effect.</td></tr>
<tr><td colspan="4">Correct label: Label 1 – Marginally relevant
- The query case involves an abuse of dominance (102 TFEU) and deals with exclusivity agreements and fidelity rebates
- The candidate case relates to cartel agreements (101 TFEU) and assesses concerted practices such as price fixing and salves volume control.

Label 0 – Not relevant
1. Does the candidate case belong to a clearly different area of EU law than the query case? No, both cases deal with competition law
2. Does the candidate case address a wholly different legal issue from the query case. Yes, abuse of dominance versus concerted practices
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. Yes, aside from the domain overlap and some procedural aspects
Not all answers are "yes" → Proceed to the next label

Label 1 – Marginally relevant
1. Do the cases share a broad legal field (e.g., both within EU law or same general domain)? Yes, EU competition law
2. Are the legal issues nevertheless different in substance (e.g., admissibility vs. substantive rights)? Yes, 102 versus 101 TFEU</td></tr>
</table>

3. Is the overlap limited to the general context rather than the specific legal reasoning or doctrine? ***Yes**, the overlap is limited to the regulatory background*

All answers are "yes" → The correct label is found

→ The candidate case might provide some general context on competition law enforcement but does not assist with the specific legal test under 102 TFEU. At best, it offers some contextual relevance to the query case.

G. Query-candidate pair 7

<table>
<tr><th colspan="4">Example 7</th></tr>
<tr><td>Query ID
ECLI:EU:C:1971:16</td><td>Query date
11/02/1971</td><td>Candidate ID
ECLI:EU:C:1978:218</td><td>Candidate date
30/11/1978</td></tr>
<tr><td colspan="2">Query title: Norddeutsches Vieh- und Fleischkontor GmbH v Hauptzollamt Hamburg-St. Annen</td><td colspan="2">Candidate title: Welding & Co. v Hauptzollamt Hambourg-Waltershof</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">The case involves a preliminary ruling request from the Finanzgericht Hamburg concerning the interpretation of EU regulations related to the suspension of import levies for certain frozen meats intended for processing. The core issue was whether national customs authorities could impose additional requirements, such as a subjective assessment of importer trustworthiness, beyond the conditions explicitly laid down in the Community regulations. The Court of Justice ruled that the uniform application of Community law prohibits national authorities from imposing additional or incompatible requirements. The Community regulations themselves provided all necessary conditions, security arrangements, and supervision methods to prevent fraud. Therefore, national laws that introduced subjective discretionary criteria, like importer trustworthiness, were deemed incompatible with the Community rules, as they could lead to unequal treatment and undermine the essential uniformity of EU law application.</td><td colspan="2">The Finanzgericht Hamburg referred a question to the Court of Justice concerning the validity of Commission Regulation No 837/68, as amended, which prescribed a flat-rate method for calculating the levy on malto-dextrine based on its dry matter content. The national court questioned whether the Commission had exceeded its powers by deviating from the Council's basic regulation and whether this method violated the principle of equal treatment and the duty to state reasons. The Court ruled that the flat-rate method was valid, provided it remained the principal factor in levy calculation and was not demonstrably unfair. The Court found that the method was consistent with the basic regulation and did not create undue discrimination. Regarding the statement of reasons, the Court held that for regulations, the preamble need only indicate the general situation and objectives, not every detailed fact, and found the Commission's explanation sufficient. Therefore, the regulation was deemed valid.</td></tr>
<tr><td colspan="4">Correct label: Label 0 – Not relevant
- The query case pertains to limits on MS' discretion and the principle of uniform application of EU law.
- The candidate case concerns the validity of an EU regulation and issues such as equal treatment and the duty to state reasons.

Label 0 – Not relevant
1. Does the candidate case belong to a clearly different area of EU law than the query case? Yes, one is about the uniform application of EU law and the other is about the validity of EU law
2. Does the candidate case address a wholly different legal issue from the query case. Yes, MS' discretion versus the validity of EU law
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. Yes, the principles that are invoked here are wholly different
All answers are "yes" → The correct label is found
→ The candidate case would not realistically assist in resolving the query case.</td></tr>
</table>

H. Query-candidate pair 8

<table>
<tr><th colspan="4">Example 8</th></tr>
<tr><td>Query ID
ECLI:EU:C:2011:612</td><td>Query date
22/09/2011</td><td>Candidate ID
ECLI:EU:C:2003:281</td><td>Candidate date
15/05/2003</td></tr>
<tr><td colspan="2">Query title: Bell & Ross BV v Office for Harmonisation in the Internal Market (Trade Marks and Designs) (OHIM)</td><td colspan="2">Candidate title: Athanasios Pitsiorlas v Council of the European Union and European Central Bank</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">Bell & Ross BV appealed against a General Court order that dismissed its action against an OHIM Board of Appeal decision as inadmissible due to the late lodging of the signed original application. The General Court found that the application's original was received after the 10-day period allowed following fax transmission, and that the appellant's explanation of a mix-up involving a third-party copy service did not constitute an excusable error or unforeseeable circumstances. The Court of Justice upheld the General Court's decision, emphasizing the strict interpretation of procedural time-limits and the principle of legal certainty. It noted that the responsibility for ensuring procedural documents are correctly lodged rests with the lawyer, and that reliance on a third-party service provider for such errors does not typically qualify for exceptions to time-limits. The Court also dismissed pleas regarding proportionality and legitimate expectations, finding no precise assurances were given to the appellant regarding procedural compliance.</td><td colspan="2">Athanasios Pitsiorlas appealed a Court of First Instance judgment that dismissed his application to annul a Council decision refusing him access to documents related to the Basle/Nyborg Agreement. The Court of First Instance found the application inadmissible because it was lodged out of time. Mr. Pitsiorlas argued that his delay was due to an excusable error, stemming from the Council's conduct, which he claimed gave rise to confusion about the finality of its decision and the correct procedure for challenging it. The Court of Justice, reviewing the appeal, found that the Court of First Instance had applied the concept of excusable error too restrictively. It noted that the Council's own communications, which initially denied the existence of the document and later provided incomplete information, could have reasonably led to confusion for a diligent applicant. Therefore, the Court of Justice set aside the contested order and referred the case back to the Court of First Instance to rule on the substance of the application, finding the delay excusable.</td></tr>
<tr><td colspan="4">Correct label: Label 2 – Substantially relevant
- The query case relates to procedural time limits and the existence of an "excusable error" in EU litigation. The Court sets out a strict interpretation for filing deadlines
- The candidate case also involves an inadmissibility because of an action lodged out of time. The notion of "excusable error" is also applied here, but in the context of seeking access to documents.

Label 0 – Not relevant
1. Does the candidate case belong to a clearly different area of EU law than the query case? No, both concern EU procedural law and admissibility
2. Does the candidate case address a wholly different legal issue from the query case. No, both deal with late actions
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. No, there is a clear overlap
Not all answers are "yes" → Proceed to the next label

Label 1 – Marginally relevant
1. Do the cases share a broad legal field (e.g., both within EU law or same general domain)? Yes, EU procedural law
2. Are the legal issues nevertheless different in substance (e.g., admissibility vs. substantive rights)? No, both concern admissibility and the existence of an "excusable error" in time-limited proceedings
3. Is the overlap limited to the general context rather than the specific legal reasoning or doctrine? No, both cases clearly go beyond a general contextual overlap, they both consider the doctrine of excusable error
Not all answers are "yes" → Proceed to the next label

Label 2 – Substantially relevant</td></tr>
</table>

1. Do both cases fall within the same specific area of law and regulatory framework? ***Yes***, *procedural admissibility and time-limits in EU litigation*
2. Do they address related legal issues or apply similar legal principles (even if not identical)? ***Yes***, *the interpretation of "excusable error"*
3. Is there meaningful overlap in reasoning, interpretation, or methodology that could assist in resolving the query case? ***Yes***, *in that both cases look into whether a delay could be justified*
4. Do they differ in terms of the legal question that is being asked or the provision that is being interpreted? ***Yes***, *the doctrinal question is essentially the same, but the procedural context (trade mark versus seeking access to documents) is different*

All answers are "yes" → The correct label is found

→ The candidate case offers strong guidance on the doctrine of excusable error, but is not fully identical in context and this makes it substantially but not directly relevant to the query case.

I. Query-candidate pair 9

<table>
<tr><th colspan="4">Example 9</th></tr>
<tr><td>Query ID
ECLI:EU:C:1998:487</td><td>Query date
15/10/1998</td><td>Candidate ID
ECLI:EU:C:2003:142</td><td>Candidate date
06/03/2003</td></tr>
<tr><td colspan="2">Query title: Commission of the European Communities v Kingdom of Belgium</td><td colspan="2">Candidate title: Commission of the European Communities v Grand Duchy of Luxembourg</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">The Commission brought an action against the Kingdom of Belgium for failing to adopt the necessary measures to transpose Directive 95/27/EC concerning noise emissions from construction machinery within the prescribed period. Belgium did not dispute the failure but cited internal legal complexities and the need for federal-level transposition. The Court reiterated its established case-law that a Member State cannot rely on internal provisions, practices, or circumstances to justify non-compliance with EU obligations and time-limits. Consequently, the Court declared that Belgium had failed to fulfil its obligations under the Directive.</td><td colspan="2">The Commission of the European Communities brought an action against the Grand Duchy of Luxembourg for failing to transpose Directive 97/66/EC concerning the processing of personal data and the protection of privacy in the telecommunications sector within the periods prescribed by the directive. The directive aimed to ensure an equivalent level of protection for fundamental rights and freedoms, particularly privacy, across all Member States in the telecommunications sector and to facilitate the free movement of data and services. Luxembourg did not dispute its failure to transpose the directive within the required timeframes, citing delays in its national legislative process. The Court of Justice, referencing established case-law, stated that a Member State cannot rely on its internal legal system or practices to justify non-compliance with EU obligations and time limits. Therefore, the Court declared that Luxembourg had failed to fulfil its obligations under the directive and ordered it to pay the costs.</td></tr>
<tr><td colspan="4">Correct label: Label 3 – Directly relevant
- The query case pertains to a failure to transpose an EU directive within the prescribed period and the principle that Member States cannot rely on internal difficulties to justify non-compliance.
- The candidate case pertains to exactly the same type of infringement and applies the same principle regarding internal justifications.

Label 0 – Not relevant
1. Does the candidate case belong to a clearly different area of EU law than the query case? No, they both involve infringement proceedings following a failure to transpose a directive
2. Does the candidate case address a wholly different legal issue from the query case. No, both involve the untimely transposition of a directive
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. No, there is clearly an overlap in terms of the principles, reasoning and facts
Not all answers are “yes” → Proceed to the next label

Label 1 – Marginally relevant
1. Do the cases share a broad legal field (e.g., both within EU law or same general domain)? Yes, EU infringement proceedings
2. Are the legal issues nevertheless different in substance (e.g., admissibility vs. substantive rights)? No, they both deal with an untimely transposition
3. Is the overlap limited to the general context rather than the specific legal reasoning or doctrine? No, the overlap is well pronounced
Not all answers are “yes” → Proceed to the next label</td></tr>
</table>

Label 2 – Substantially relevant

1. Do both cases fall within the same specific area of law and regulatory framework? ***Yes***
2. Do they address related legal issues or apply similar legal principles (even if not identical)? ***Yes****, the issue in both cases is a failure to transpose directives*
3. Is there meaningful overlap in reasoning, interpretation, or methodology that could assist in resolving the query case? ***Yes****, the reasoning is quasi identical*
4. Do they differ in terms of the legal question that is being asked or the provision that is being interpreted? ***No****, the legal question is essentially the same*

Not all answers are "yes" → Proceed to the next label

Label 3 – Directly relevant

1. Do both cases concern the same specific legal provision or closely related provisions? ***Yes****, the obligation to transpose directive under EU law*
2. Do they address essentially the same legal question or problem? ***Yes****, whether internal difficulties justify failure to transpose*
3. Do they apply the same legal test, principles, or doctrinal framework? ***Yes.***
4. Would the reasoning in the candidate case directly guide or resolve the issue in the query case? ***Yes****, the reasoning is directly transferrable*

All answers are "yes" → The correct label is found

→ The candidate case is functionally identical in legal reasoning and in terms of the core issue. This makes the candidate case a direct authority for the query case.

J. Query-candidate pair 10

<table>
<tr><th colspan="4">Example 10</th></tr>
<tr><td>Query ID
ECLI:EU:T:2015:863</td><td>Query date
18/11/2015</td><td>Candidate ID
ECLI:EU:T:2017:759</td><td>Candidate date
26/10/2017</td></tr>
<tr><td colspan="2">Query title: Instituto dos Vinhos do Douro e do Porto, IP v Office for Harmonisation in the Internal Market (Trade Marks and Designs)</td><td colspan="2">Candidate title: Alpirsbacher KlosterbrÃ¤u Glauner GmbH & Co. KG v European Union Intellectual Property Office</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">The applicant, Instituto dos Vinhos do Douro e do Porto, sought to invalidate the Community trade mark PORT CHARLOTTE registered for whisky, arguing it conflicted with the protected designations of origin ‘porto’ and ‘port’. The OHIM Board of Appeal rejected the application, finding that the protection for ‘porto’ and ‘port’ under EU wine regulations was exclusive and did not apply to whisky, and that the mark PORT CHARLOTTE did not infringe these protections or other grounds for invalidity. The General Court annulled the Board’s decision, finding that the Board erred by failing to consider the relevant Portuguese law on designations of origin as a supplementary protection alongside EU law, as permitted by Regulation No 207/2009. The Court found that the Board should have assessed the evidence submitted by the applicant regarding Portuguese law and its interpretation by national courts. However, the Court rejected the applicant’s claims regarding the descriptive nature of the mark and misleading the public, as well as claims based on OHIM’s previous decision-making practice.</td><td colspan="2">The applicant sought to register the word mark ‘Klosterstoff’ for beer and alcoholic beverages. EUIPO refused the application based on absolute grounds for refusal under Article 7(1) of Regulation No 207/2009, finding the mark to be descriptive, devoid of distinctive character, and misleading. The Board of Appeal upheld this decision. The applicant appealed to the General Court, arguing that the Board erred in its assessment of the descriptive and misleading nature of the mark. The General Court examined the meaning of ‘Kloster’ (monastery) and ‘Stoff’ (colloquially, alcohol), concluding that the combination clearly indicated alcoholic beverages originating from or produced in a monastery. It found the mark descriptive for alcoholic beverages and misleading when applied to non-alcoholic beverages, as the term ‘Stoff’ could be understood as referring to alcohol. The Court also noted that EUIPO’s previous decision-making practice was not binding. Consequently, the General Court dismissed the action.</td></tr>
<tr><td colspan="4">Correct label: Label 1 – Marginally relevant
- The query case is about relative grounds for invalidity linked to protected designations of origin and the interaction between EU and national law.
- The candidate case concerns absolute grounds for refusal (descriptiveness and a misleading character) under EU trade mark law.

Label 0 – Not relevant
1. Does the candidate case belong to a clearly different area of EU law than the query case? No, both cases deal with EU trade mark law
2. Does the candidate case address a wholly different legal issue from the query case. Yes, invalidity based on protected designations of origin versus absolute grounds of refusal
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. No, there is some overlap in terms of the general trade mark framework
Not all answers are “yes” → Proceed to the next label

Label 1 – Marginally relevant
1. Do the cases share a broad legal field (e.g., both within EU law or same general domain)? Yes, EU trade mark law
2. Are the legal issues nevertheless different in substance (e.g., admissibility vs. substantive rights)? Yes, protected designations of origin against the descriptive and misleading character of a mark
3. Is the overlap limited to the general context rather than the specific legal reasoning or doctrine? Yes, the overlap is limited to the regulatory background
All answers are “yes” → The correct label is found</td></tr>
</table>

→ The candidate case gives only general background on trade mark assessments, but it does not assist with the specific invalidity analysis involving a protected designation of origin.

K. Query-candidate pair 11

<table>
<tr><th colspan="4">Example 11</th></tr>
<tr><td>Query ID
ECLI:EU:C:1982:423</td><td>Query date
09/12/1982</td><td>Candidate ID
ECLI:EU:C:1979:87</td><td>Candidate date
26/10/2017</td></tr>
<tr><td colspan="2">Query title: H.P. Klughardt oHG v Hauptzollamt Hamburg-St. Annen</td><td colspan="2">Candidate title: P. Biegi v Hauptzollamt Bochum</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">The case involves a dispute over customs duties and monetary compensatory amounts applied to imported frozen boneless buffalo meat. The importer argued that buffalo meat, particularly from wild buffalo, was not covered by the common organization of the market in beef and veal as established by Council Regulation (EEC) No 425/77. The Bundesfinanzhof (Federal Finance Court) referred two questions to the Court of Justice: first, whether Regulation No 425/77 intended to include wild buffalo meat in the beef and veal market organization, and second, if so, whether the regulation was invalid due to insufficient statement of reasons under Article 190 of the EEC Treaty. The Court, considering the Council's and Commission's arguments, concluded that the regulation, by not distinguishing between domestic and non-domestic buffalo meat in its provisions on meat, implicitly covered meat from non-domestic species. The Court also found that the statement of reasons in the regulation's preamble was sufficient, as it explained the essential measures taken, without needing to detail every specific aspect. Therefore, the Court ruled that the regulation was valid and covered buffalo meat of non-domestic species.</td><td colspan="2">The Finanzgericht Münster referred questions to the Court of Justice concerning Commission Regulation (EEC) No 1669/77, which classified boned or boneless poultry meat under subheading 02.02 B I of the Common Customs Tariff. The plaintiff argued that this regulation was invalid because it substantively amended the tariff, exceeded the Commission's powers, and had retroactive effect. The Court ruled that the Commission had a wide discretion to specify tariff classifications under Regulation No 97/69 and that Regulation No 1669/77 did not amend the tariff text but clarified it. However, the Court also stated that such regulations cannot have retroactive effect, meaning they do not apply to imports prior to their entry into force. The Court clarified that boned or boneless poultry cuts are classified under subheading 02.02 B I if they consist essentially of muscle tissue, regardless of presentation, production method, use, commercial value, size, or weight, as long as they contain only a small proportion of fat, skin, or fibrous tissue. The Court also emphasized that tariff classification criteria should be uniform across different applications, such as customs duties, market organization rules, and monetary compensatory amounts.</td></tr>
<tr><td colspan="4">Correct label: Label 1 – Marginally relevant
- The query case looks into the scope and validity of an EU customs instrument applicable to buffalo meat.
- The candidate case relates to a tariff classification and the validity of a Commission regulation as well as limits of implementing powers and retroactivity.

Label 0 – Not relevant
1. Does the candidate case belong to a clearly different area of EU law than the query case? No, they are both about EU customs law/agricultural law
2. Does the candidate case address a wholly different legal issue from the query case. No, they both involve the interpretation and validity of EU regulations
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. No, both cases involve an interpretation of the regulatory framework
Not all answers are "yes" → Proceed to the next label

Label 1 – Marginally relevant
1. Do the cases share a broad legal field (e.g., both within EU law or same general domain)? Yes, EU customs/agricultural regulation
2. Are the legal issues nevertheless different in substance (e.g., admissibility vs. substantive rights)? Yes, one is about the scope of market organization and the other is about a tariff classification and EC implementing powers</td></tr>
</table>

3. Is the overlap limited to the general context rather than the specific legal reasoning or doctrine? ***Yes**, the legal test and questions differ*

All answers are "yes" → The correct label is found

→ The candidate case gives perhaps general guidance on EU regulatory validity, but does not assist with the specific issue in the query case.

L. Query-candidate pair 12

<table>
<tr><th colspan="4">Example 12</th></tr>
<tr><td>Query ID
ECLI:EU:C:2000:558</td><td>Query date
12/10/2000</td><td>Candidate ID
ECLI:EU:C:2002:192</td><td>Candidate date
21/03/2002</td></tr>
<tr><td colspan="2">Query title: The Queen v Ministry of Agriculture, Fisheries and Food, ex parte J.H. Cooke & Sons</td><td colspan="2">Candidate title: Kingdom of Spain v Commission of the European Communities</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">This case involves a preliminary ruling request from a UK court concerning the interpretation of EU regulations on the Common Agricultural Policy, specifically Council Regulation (EEC) No 1765/92 and Commission Regulation (EC) No 762/94, related to the set-aside scheme for arable crops. The dispute centres on whether land previously sown with grass, which was then cut and used for silage, qualifies as 'an area which has been cultivated in the previous year with a view to a harvest'. The applicant, J.H. Cooke & Sons, had its application for compensatory payments rejected by MAFF because the land in question was considered not to have been cultivated for a harvest. The Court of Justice interpreted the relevant provisions to mean that land sown with grass, which was subsequently cut and used for silage, does fall within the definition of land cultivated with a view to harvest. The Court also addressed the temporal effects of its judgment, declining to limit them due to a lack of 'serious difficulties' and noting that the applicant had not acted in good faith regarding the interpretation of the rules.</td><td colspan="2">The Kingdom of Spain challenged Commission decisions that excluded certain agricultural expenditure from EAGGF financing for the 1995 and 1996 financial years. The Commission cited numerous deficiencies in Spain's control systems across various sectors, including arable crops, set-aside land, beef premiums, additional milk levy, olive oil production aid, wine, and fibre flax/hemp. The Court of Justice examined Spain's arguments, which included claims of procedural errors, insufficient reasoning, impossibility of compliance with deadlines, and unjustified flat-rate adjustments. The Court largely upheld the Commission's decisions, finding that Spain failed to provide sufficient evidence to counter the Commission's findings of systemic deficiencies and risks to the EAGGF. However, the Court partially annulled the decisions concerning olive oil production aid (for expenditure before a specific date) and the deduction of default interest on the additional milk levy, finding the Commission's reasoning for these specific exclusions to be flawed. The Court reiterated that Member States must apply specific Community supervision measures and that the Commission's flat-rate adjustments are permissible when justified by significant risks, even if not all individual irregularities are proven.</td></tr>
<tr><td colspan="4">Correct label: Label 1 – Marginally relevant
- The query case considers the interpretation of CAP provisions and the eligibility of compensatory payments in relation to "land cultivated with a view to harvest".
- The candidate case pertains to the European Agricultural Guidance and Guarantee Fund and the EC's control over Member State expenditures. The issue revolves around financial deficiencies.

Label 0 – Not relevant
1. Does the candidate case belong to a clearly different area of EU law than the query case? No, both cases are about EU agricultural law
2. Does the candidate case address a wholly different legal issue from the query case. Yes, on the one hand the eligibility for payments versus financial deficiencies
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. No, they both feature an interpretation of EU agricultural rules
Not all answers are "yes" → Proceed to the next label

Label 1 – Marginally relevant
1. Do the cases share a broad legal field (e.g., both within EU law or same general domain)? Yes, the CAP
2. Are the legal issues nevertheless different in substance (e.g., admissibility vs. substantive rights)? Yes, substantive eligibility for compensation versus corrections following financial deficiencies</td></tr>
</table>

3. Is the overlap limited to the general context rather than the specific legal reasoning or doctrine? ***Yes**, the legal test and questions differ*

All answers are "yes" → The correct label is found

→ The candidate case could help interpret the query case in terms of the CAP, but it does not help with the interpretation of eligibility conditions for agricultural payments.

M. Query-candidate pair 13

<table>
<tr><th colspan="4">Example 13</th></tr>
<tr><td>Query ID
ECLI:EU:T:1992:30</td><td>Query date
28/02/1992</td><td>Candidate ID
ECLI:EU:T:2008:519</td><td>Candidate date
20/11/2008</td></tr>
<tr><td colspan="2">Query title: Laura Moretti v Commission of the European Communities</td><td colspan="2">Candidate title: Italian Republic v Commission of the European Communities</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">The applicant, an official of the Commission, sought to annul a decision appointing another official to a lawyer-reviser post. The applicant had not applied for the post and did not possess the required legal education. The Court of First Instance noted that for an official to challenge an appointment decision, they must have a personal interest in its annulment. Since the applicant could not validly claim the vacant post due to not applying and not meeting the qualifications, she lacked the necessary personal interest. The Court also addressed the applicant's arguments regarding a related competition, finding no direct link that would invalidate the appointment procedure. Consequently, the application was dismissed as inadmissible.</td><td colspan="2">The Italian Republic, supported by Spain and Latvia, sought the annulment of a Commission decision to publish vacancy notices for senior management posts in only English, French, and German, and a specific vacancy notice for the Director-General of OLAF published in these three languages. The applicants argued that this decision and notice infringed EU language rules (Regulation No 1), the principle of non-discrimination on grounds of nationality and language (Article 12 EC), the principle of proportionality, and provisions of the Staff Regulations. The Commission contended that its actions were justified by translation capacity limitations and the need for internal working languages, and that such notices were not subject to the same language requirements as external communications. The Court of First Instance found that the Commission's decision was a binding act open to challenge and that its publication in only three languages, without adequate compensatory measures to inform candidates using other official languages, constituted discrimination contrary to the Staff Regulations and the principle of proportionality. Consequently, the Court annulled both the decision and the vacancy notice.</td></tr>
<tr><td colspan="4">Correct label: Label 1 – Marginally relevant
- The query case considers the concept of admissibility in EU staff law and more specifically the requirement of having a personal interest in challenging an appointment decision.
- The candidate case also concerns EU staff law and recruitment procedures but focuses on language discrimination due to a notice being published in only three languages.

Label 0 – Not relevant
1. Does the candidate case belong to a clearly different area of EU law than the query case? No, both cases relate to EU staff law
2. Does the candidate case address a wholly different legal issue from the query case. Yes, admissibility versus discrimination in recruitment procedures
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. No, both cases related to EU staff recruitment
Not all answers are "yes" → Proceed to the next label

Label 1 – Marginally relevant
1. Do the cases share a broad legal field (e.g., both within EU law or same general domain)? Yes, EU staff law
2. Are the legal issues nevertheless different in substance (e.g., admissibility vs. substantive rights)? Yes, procedural matters versus a legality review</td></tr>
</table>

3. Is the overlap limited to the general context rather than the specific legal reasoning or doctrine? ***Yes**, the doctrinal focus is different*

All answers are "yes" → The correct label is found

→ The candidate case is also about EU staff recruitment rules, but it does not assist with the specific admissibility requirement of personal interest that is featured in the query case.

N. Query-candidate pair 14

<table>
<tr><th colspan="4">Example 14</th></tr>
<tr><td>Query ID
ECLI:EU:C:1997:105</td><td>Query date
06/03/1997</td><td>Candidate ID
ECLI:EU:C:2013:17</td><td>Candidate date
17/01/2013</td></tr>
<tr><td colspan="2">Query title: Maatschap M.J.M. Linthorst, K.G.P. Pouwels en J. Scheren c.s. v Inspecteur der Belastingdienst/Ondernemingen Roermond</td><td colspan="2">Candidate title: European Commission v Kingdom of Spain</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">The case involves a Netherlands-based veterinary partnership (Linthorst) that provided services to clients in Belgium. Linthorst argued that these services should be taxed in Belgium under specific exceptions in Article 9(2) of the Sixth VAT Directive, relating to valuations or work on movable tangible property, or consultancy services. However, the Court of Justice, interpreting Article 9, concluded that the principal and habitual activities of a veterinary surgeon do not fall under these specific exceptions. The Court reasoned that veterinary services are not primarily 'valuations' or 'work' on property in the sense intended by the directive, nor do they fit the description of 'consultants' or 'similar services'. Therefore, the general rule in Article 9(1) applies, meaning the place of supply is where the supplier (Linthorst) has established its business. This means the services were subject to Netherlands VAT.</td><td colspan="2">The European Commission brought an action against the Kingdom of Spain for failing to fulfil its obligations under the EU VAT Directive concerning the application of reduced VAT rates. The Commission argued that Spain incorrectly applied reduced VAT rates to medicinal substances that are not finished products and to medical devices and equipment that are not intended for the exclusive personal use of the disabled or are for veterinary use. The Court of Justice, interpreting the relevant provisions of the VAT Directive and its annexes strictly, found that the scope of reduced VAT rates for pharmaceutical products and medical aids is limited. It ruled that medicinal substances not intended for direct consumer use and medical devices not exclusively for personal use by the disabled, or those for veterinary use, do not qualify for the reduced rate. Consequently, the Court declared that Spain had failed to fulfil its obligations under the directive.</td></tr>
</table>

Correct label: Label 1 – Marginally relevant

- The query case is about the place of supply under the Sixth VAT Directive and the classification of veterinary services under Article 9.
- The candidate case revolves around the application of reduced VAT rates to unfinished medicinal substances and medical devices under the VAT Directive.

Label 0 – Not relevant

1. Does the candidate case belong to a clearly different area of EU law than the query case? ***No**, they are both about EU VAT law*
2. Does the candidate case address a wholly different legal issue from the query case. ***Yes**, the query is about the place of supply and the candidate is about the application of reduced VAT rates*
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. ***No**, they both involve the interpretation of VAT directive provisions*

Not all answers are "yes" → Proceed to the next label

Label 1 – Marginally relevant

1. Do the cases share a broad legal field (e.g., both within EU law or same general domain)? ***Yes**, EU VAT law*
2. Are the legal issues nevertheless different in substance (e.g., admissibility vs. substantive rights)? ***Yes**, the classification of services versus the eligibility for reduced rates*
3. Is the overlap limited to the general context rather than the specific legal reasoning or doctrine? ***Yes**, the legal tests and provisions differ*

All answers are "yes" → The correct label is found

→ The candidate case could general interpretative guidance within VAT law, but it does not help with solving the issue in the query case.

O. Query-candidate pair 15

<table>
<tr><th colspan="4">Example 15</th></tr>
<tr><td>Query ID
ECLI:EU:C:2019:717</td><td>Query date
12/09/2019</td><td>Candidate ID
ECLI:EU:C:2017:61</td><td>Candidate date
26/01/2017</td></tr>
<tr><td colspan="2">Query title: European Commission v Kolachi Raj Industrial (Private) Ltd</td><td colspan="2">Candidate title: Maxcom Ltd v Chin Haur Indonesia, PT</td></tr>
<tr><td colspan="2">Query summary</td><td colspan="2">Candidate summary</td></tr>
<tr><td colspan="2">The European Commission appealed a General Court judgment that annulled an implementing regulation extending anti-dumping duties on bicycles from Pakistan. The Commission had found that Kolachi Raj, a Pakistani company, circumvented existing anti-dumping measures by assembling bicycles using parts predominantly from China, with minimal processing in Sri Lanka. The General Court annulled the regulation, finding that the Commission had erred in law by applying Article 13(2)(b) of the basic anti-dumping regulation by analogy and by restricting the interpretation of 'from' to direct import, rather than considering the broader concept of origin or using a body of consistent evidence. The Court of Justice, however, disagreed with the General Court's restrictive interpretation. It held that 'from' in Article 13(2)(a) should be interpreted broadly, not limited to direct imports or customs origin, and that the EU institutions are not required to prove customs origin but can rely on a body of consistent evidence to demonstrate circumvention. The Court found that the Commission had sufficient evidence to conclude that the parts were 'from' China, given the high proportion of Chinese raw materials, minimal Sri Lankan value added, and the company's relatedness to other entities involved in circumvention. Consequently, the Court set aside the General Court's judgment and dismissed Kolachi Raj's action.</td><td colspan="2">This case involves appeals by Maxcom Ltd, the Council of the EU, and the European Commission against a General Court judgment that annulled parts of an EU regulation extending anti-dumping duties on bicycles to imports from Indonesia. The General Court found insufficient evidence that the Indonesian company Chin Haur engaged in transhipment to circumvent the measures. The appellants argue the General Court erred in law by misapplying Article 13(1) of the basic anti-dumping regulation, misinterpreting the burden of proof, and failing to properly consider the evidence available, particularly in light of Chin Haur's lack of cooperation. The Court of Justice found that the General Court did err in law by requiring direct proof of transhipment rather than allowing findings based on a body of consistent evidence when cooperation is lacking. The Court set aside the General Court's judgment, dismissed Chin Haur's action, and ordered Chin Haur to pay the costs.</td></tr>
<tr><td colspan="4">Correct label: Label 3 – Directly relevant
- The query case concerns anti-dumping law and circumvention under Article 13 of the basic regulation. The core issue revolves around the evidentiary standard and having a "body of consistent evidence".
- The candidate case also concerns the circumvention of anti-dumping measures. It addresses the same provision and features the same issue of evidentiary standards.

Label 0 – Not relevant
1. Does the candidate case belong to a clearly different area of EU law than the query case? No, both concern EU anti-dumping law
2. Does the candidate case address a wholly different legal issue from the query case. No, both concern the circumvention of anti-dumping measures and evidentiary standards
3. Is there no meaningful overlap in legal principles, reasoning, or factual context. No, there is a clear overlap between both cases
Not all answers are "yes" → Proceed to the next label

Label 1 – Marginally relevant</td></tr>
</table>

1. Do the cases share a broad legal field (e.g., both within EU law or same general domain)? ***Yes**, EU anti-dumping rules*
2. Are the legal issues nevertheless different in substance (e.g., admissibility vs. substantive rights)? ***No**, they both concern circumvention*
3. Is the overlap limited to the general context rather than the specific legal reasoning or doctrine? ***No**, the overlap is doctrinal and specific enough*

Not all answers are "yes" → Proceed to the next label

Label 2 – Substantially relevant

1. Do both cases fall within the same specific area of law and regulatory framework? ***Yes**, article 13 of the basic anti-dumping regulation*
2. Do they address related legal issues or apply similar legal principles (even if not identical)? ***Yes**, namely proof of circumvention*
3. Is there meaningful overlap in reasoning, interpretation, or methodology that could assist in resolving the query case? ***Yes**, the focus in both cases is on relying on a body of consistent evidence*
4. Do they differ in terms of the legal question that is being asked or the provision that is being interpreted? ***No**, the legal question is essentially the same*

Not all answers are "yes" → Proceed to the next label

Label 3 – Directly relevant

1. Do both cases concern the same specific legal provision or closely related provisions? ***Yes**, article 13*
2. Do they address essentially the same legal question or problem? ***Yes**, how circumvention can be established*
3. Do they apply the same legal test, principles, or doctrinal framework? ***Yes**, a check for "consistent evidence"*
4. Would the reasoning in the candidate case directly guide or resolve the issue in the query case? ***Yes**, the reasoning is directly transferrable*

All answers are "yes" → The correct label is found

→ The candidate case is highly doctrinally and factually aligned with the query case and this makes it a direct authority.